

COURTS, CLIMATE CHANGE, AND THE GLOBAL PACT FOR THE ENVIRONMENT

DISCUSSION LEADERS

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Most of these materials come from a world that had not yet faced the pandemic of COVID-19 or the wave of demonstrations and outrage triggered by the death of George Floyd in May 2020. BLACK LIVES MATTER protests around the world have highlighted profound questions about racial justice and structural inequality—and thus who enjoys the benefits of contemporary life. These concerns have shifted the focus from environmental challenges to public health and economic threats as well as to racism and policing. Yet even as we write, the links between climate change and new diseases are emerging. Moreover, the relationships between racial and environmental justice have been documented for decades, as communities of color and segments of the globe disproportionately bear the burden of these harms. Coping with a “new normal” has to include questions regarding the sustainability of the planet and human well-being broadly conceived.

The risks to the environment, both locally and globally, are as catastrophic as this pandemic. Over the last year, dramatic fires, melting ice, and devastating floods—in addition to the COVID-19 health crisis and related economic distress—have put the inhabitants of this planet in harm’s way in an unprecedented fashion. Courts continue to confront questions about whether and how to respond, as they seek to sort out misinformation from facts, and also confront hostility to expertise and the suppression of scientific information.

This Chapter continues conversations begun at the 2019 Global Constitutionalism Seminar, as awareness of the precarious state of our world becomes all the more acute. We begin with debates about what role courts should play, a question

that intersects with what remedies they can and should provide in response to climate change. The Chapter then turns to issues of knowledge about and accountability for current and future environmental harms. This segment explores how courts determine what information governments and corporations must make public as well as who has the right to access that information and require disclosure.

Recognizing that global problems often inspire calls for global solutions, the Chapter ends with an examination of efforts to constitute a Global Pact for the Environment. The 2015 Paris Climate Change Agreement established an array of policy goals and nationally determined contributions (NDCs) on the part of the 180 signatory nations. The Agreement and the commitments it reflects have served as a foundation for litigation in national courts to ensure follow-through and action to combat climate change. In 2020, environmental experts and national governments are hoping to build upon this foundation to shape broader commitments to a sustainable future with a Global Pact for the Environment.

DEBATING THE ROLE OF COURTS

This section examines conflicts over courts' authority to handle climate change litigation. Our questions include what legal bases authorize courts to exercise jurisdiction over claims of environmental harms, the duties states have under domestic or international law to know and to mitigate harms, and the remedies that can flow from breaches.

We begin with a 2017 advisory opinion from the Inter-American Court of Human Rights, in which the IACHR addressed a question from Colombia about the scope of its duties of environmental protection under regional and international legal instruments.

State Obligations in Relation to the Environment **Inter-American Court of Human Rights** **Advisory Opinion OC-23/17 (2017)**

[Judges Roberto F. Caldas, Eduardo Ferrer Mac-Gregor Poisot, Eduardo Vio Grossi, Humberto Antonio Sierra Porto, Elizabeth Odio Benito, Eugenio Raúl Zaffaroni, and L. Patricio Pazmiño Freire:]

1. . . . [T]he Republic of Colombia . . . presented a request for an advisory opinion . . . concerning State obligations in relation to the environment in the context of the protection and guarantee of the rights to life and to personal integrity The Court was asked to determine “how the Pact of San José [(the American Convention on Human Rights)] should be interpreted when there is a danger that the construction and operation of major new infrastructure projects may have severe effects on the marine

environment in the Wider Caribbean Region and, consequently, on the human habitat that is essential for the full enjoyment and exercise of the rights of the inhabitants of the coasts” In addition, the requesting State asked the Court to determine “how the Pact of San José should be interpreted in relation to other treaties concerning the environment . . . , as well as the respective international obligations concerning prevention, precaution, mitigation of damage, and cooperation between the States potentially affected.” . . .

35. . . . [O]wing to the general interest of its advisory opinions, their scope should not be restricted to specific States. . . . [T]he Court will rule on the State obligations with regard to the environment that are most closely related to the protection of human rights, which is the main function of this Court. . . .

56. . . . [The Inter-American human rights system establishes the right to a healthy environment] in Article 11 of the Protocol of San Salvador:

1. Everyone shall have the right to live in a healthy environment

2. The States Parties shall promote the protection, preservation, and improvement of the environment. . . .

59. The human right to a healthy environment . . . has both individual and also collective connotations. In its collective dimension, the right to a healthy environment constitutes a universal value that is owed to both present and future generations. That said, the right to a healthy environment also has an individual dimension insofar as its violation may have a direct and an indirect impact on the individual owing to its connectivity to other rights, such as the rights to health, personal integrity, and life. . . .

62. . . . [A]s an autonomous right, the right to a healthy environment, unlike other rights, protects the components of the environment, such as forests, rivers and seas, as legal interests in themselves, even in the absence of the certainty or evidence of a risk to individuals. . . .

64. . . . [D]amage to the environment may affect all human rights, in the sense that the full enjoyment of all human rights depends on a suitable environment. Nevertheless, some human rights are more susceptible than others to certain types of environmental damage. . . .

66. The . . . rights that are particularly vulnerable to environmental impact include the rights to life, personal integrity, private life, health, water, food, housing, participation in cultural life, property, and the right to not be forcibly displaced. . . .

67. The . . . effects on these rights may be felt with greater intensity by certain groups in vulnerable situations . . . [, including] indigenous peoples, children, people living in extreme poverty, minorities, . . . people with disabilities, . . . [and] women. . . .

77. . . . States may not only be found internationally responsible for acts or omissions attributed to them within their territory, but also for those acts or omissions committed outside their territory, but under their jurisdiction. . . .

108. . . . [T]he right to life in the American Convention is essential because the realization of the other rights depends on its protection. . . . Article 4* of the American Convention . . . not only presupposes that no person may be deprived of his or her life arbitrarily (negative obligation) but also . . . requires States to take all appropriate measures to protect and preserve the right to life (positive obligation) of all persons subject to their jurisdiction.

109. In addition, States must . . . create an appropriate legal framework to deter any threat to the right to life; establish an effective system of justice capable of investigating, punishing and providing redress for any deprivation of life by State agents or private individuals, and safeguard the right of access to the conditions that ensure a decent life, which includes adopting positive measure to prevent the violation of this right. . . . Among the conditions required for a decent life the Court has referred to access to, and the quality of, water, food and health, and . . . environmental protection

125. . . . [I]n the context of environmental protection, States must fulfill a series of obligations . . . (1) the obligation of prevention; (2) the precautionary principle; (3) the obligation of cooperation, and (4) the procedural obligations relating to environmental protection in order to establish and determine the State obligations derived from . . . these provisions together with the obligations to respect and to ensure the rights to life and personal integrity

145. The specific measures States must take [to comply with the obligation of prevention] include the obligations to: (i) regulate; (ii) supervise and monitor; (iii) require and approve environmental impact assessments; (iv) establish contingency plans, and (v) mitigate, when environmental damage has occurred. . . .

175. . . . [T]he precautionary principle refers to the measures that must be taken in cases where there is no scientific certainty about the impact that an activity could have on the environment. . . . [T]he Rio Declaration establishes that:

In order to protect the environment, the precautionary approach shall be widely applied by States according to their capabilities. Where there are threats of serious or irreversible damage, lack of full scientific certainty shall not be used as a reason for postponing cost-effective measures to prevent environmental degradation. . . .

* Article 4 of the American Convention on Human Rights provides:

1. Every person has the right to have his life respected. This right shall be protected by law. . . . No one shall be arbitrarily deprived of his life.

181. Article 26* of the American Convention establishes the obligation of international cooperation with a view to the development and protection of economic, social and cultural rights. Several articles of the Protocol of San Salvador also refer to cooperation between States. . . .

186. . . . [T]he duty to cooperate is an obligation between States. International law has defined the following specific duties . . . in relation to environmental matters in order to comply with this obligation: (1) the duty to notify, and (2) the duty to consult and negotiate with potentially affected States . . . as well as (3) the possibility of sharing information established in numerous international environmental instruments. . . .

211. . . . [A] series of procedural obligations exist with regard to environmental matters. . . . In this regard, inter-American jurisprudence has recognized the instrumental nature of certain rights established in the American Convention

212. . . . [These obligations relate to]: (1) access to information; (2) public participation, and (3) access to justice, all in relation to the States' environmental protection obligations. . . .

243. The obligations described above have been developed in relation to the general obligations to respect and to ensure the rights to life and to personal integrity, because these were the rights that the State referred to in its request. . . . However, this does not mean that the said obligations do not exist with regard to the other rights mentioned in this Opinion as being particularly vulnerable in the case of environmental degradation

244. For the above reasons . . . the Court decides unanimously, that: . . .

To respect and to ensure the rights to life and to personal integrity of the persons subject to their jurisdiction, States have the obligation to prevent significant environmental damage within or outside their territory and, to this end, must regulate, supervise and monitor activities within their jurisdiction that could produce significant environmental damage; conduct environmental impact assessments when there is a risk of significant environmental damage; prepare a contingency plan to establish safety measures and procedures to minimize the possibility of major environmental accidents, and mitigate any significant environmental damage that may have occurred

* Article 26 of the American Convention on Human Rights provides:

The States Parties undertake to adopt measures, both internally and through international cooperation, . . . with a view to achieving progressively . . . the full realization of the rights implicit in the economic, social, educational, scientific, and cultural standards set forth in the Charter of the Organization of American States as amended by the Protocol of Buenos Aires.

The 2019 Global Constitutionalism Seminar volume highlighted two trial-court decisions—*The State of the Netherlands v. Urgenda Foundation*, C/09/456689 (2015) and *Juliana v. United States*, 217 F. Supp. 3d 1224 (D. Or. 2016). In both cases, judges found that climate change was justiciable and remediable by the judiciary. On appeal, the two cases diverged, as the Supreme Court of Netherlands affirmed and the Court of Appeals for the Ninth Circuit rejected a role for the judiciary. Our question is how the legal frameworks for adjudication in each jurisdiction explain the differences in analyses.

The State of the Netherlands v. Urgenda Foundation
Supreme Court of the Netherlands (Civil Division)
Number 19/00135 (2019)

[Judgement rendered by Vice President C.A. Streefkerk as chairman and justices G. Snijders, M.V. Polak, T.H. Tanja-van den Broek and H.M. Wattendorff:]

[Urgenda Foundation and 900 Dutch citizens sued the Dutch government to reduce the country's greenhouse gas emissions. The plaintiffs argued that the Netherlands has a duty of care to reduce emissions under *inter alia* Articles 2* and 8** of the European Convention on Human Rights (ECHR). The District Court of The Hague ordered the state to reduce annual greenhouse gas emissions by at least 25% at the end of 2020 compared to emissions in 1990. The Hague Court of Appeal affirmed.]

. . . 5.6.3 . . . The question is whether the global nature of [greenhouse gas] emissions and the consequences thereof [impose a state obligation to reduce emissions under] Articles 2 and 8 ECHR. . . .

5.7.2 . . . [C]limate change is a global problem that needs to be solved globally. Where emissions of greenhouse gases take place from the territories of all countries and all countries are affected, measures will have to be taken by all countries. . . .

* Article 2 of the European Convention on Human Right provides:

1. Everyone's right to life shall be protected by law. . . .

** Article 8 of the European Convention on Human Rights provides:

1. Everyone has the right to respect for his private and family life, his home and his correspondence.

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

5.7.7 . . . [T]he defence that a state does not have to take responsibility because other countries do not comply with their partial responsibility, cannot be accepted. Nor can the assertion that a country's own share in global greenhouse gas emissions is very small and that reducing emissions from one's own territory makes little difference on a global scale, be accepted as a defence. . . .

5.8 . . . Articles 2 and 8 ECHR relating to the risk of climate change should be interpreted in such a way that these provisions oblige the contracting states to do "their part" to counter [the danger of climate change]. . . .

6.1 . . . However, this does not yet answer the question of what this obligation on the part of the State means in concrete terms. . . .

7.4.2 . . . The State argues that it intends to . . . [accelerate emissions] reductions . . . after 2020 and that it prefers this reduction path over the [25% to 40% reduction in greenhouse gas emissions in 2020 compared to 1990 suggested by the Fourth Intergovernmental Panel on Climate Change Assessment Report]. The question, however, is whether an accelerated reduction of greenhouse gas emissions in the Netherlands after 2020 can indeed achieve the same result. . . .

7.4.3 All greenhouse gas emissions lead to a reduction in the carbon budget still available. . . . [F]or each postponement of emissions reductions, the reduction measures to be taken at a later date will have to be increasingly far-reaching and costly in order to achieve the intended result, and it will also be riskier. . . .

7.4.6 . . . The State has not provided any insight into which measures it intends to take in the coming years . . . [that] would be both practically feasible and sufficient

7.5.2 The State has also argued . . . that it meets its obligations under Articles 2 and 8 ECHR by taking adaptation measures . . . and that it therefore does not have to meet the 25-40% target. . . . [I]t has not been demonstrated or made plausible that the potentially disastrous consequences of excessive global warming can be adequately prevented by such measures. . . .

8.1 The State argues . . . that the District Court's order to reduce Dutch greenhouse gas emissions by at least 25% in 2020 compared to 1990 levels . . . is impermissible for two reasons. The first reason is that the order amounts to an order to create legislation The second reason is . . . that it is not for the courts to make the political considerations necessary

8.2.1 If the government is obliged to do something, it may be ordered to do so by the courts This is a fundamental rule of constitutional democracy

8.2.6 . . . [T]he courts are only not permitted to issue an order to create legislation with a particular, specific content. . . . [C]ourts are [allowed] to issue a declaratory

decision . . . that the omission of legislation is unlawful They may also order the public body in question to take measures . . . to achieve a certain goal, as long as that order does not . . . create legislation with a particular content. . . .

8.2.7 . . . [The District Court's] order does not amount to an order to take specific legislative measures, but leaves the State free to choose the measures to be taken in order to achieve a 25% reduction in greenhouse gas emissions by 2020. . . .

8.3.1 This brings the Supreme Court to . . . the State's more general argument that it is not for the courts to make the political considerations necessary for a decision on the reduction of greenhouse gas emissions.

8.3.2 . . . [T]he reduction of greenhouse gas emissions is a power of the government and parliament. They have a large degree of discretion to make the political considerations that are necessary in this regard. It is up to the courts to decide whether, in availing themselves of this discretion, the government and parliament have remained within the limits of the law by which they are bound. . . .

8.3.4 This case involves an exceptional situation. . . . [T]here is the threat of dangerous climate change and it is clear that measures are urgently needed. . . . The state is obliged to do 'its part' in this context. . . . [T]hat duty follows from Articles 2 and 8 ECHR, on the basis of which the State is obliged to protect the right to life and the right to private and family life of its residents. . . . The policy that the State [has pursued] since 2011 and intends to pursue in the future, . . . whereby measures are postponed for a prolonged period of time, is clearly not in accordance with this

8.3.5 . . . [T]he State is . . . obliged to achieve the aforementioned reduction of at least 25% by 2020.

* * *

Article III of the U.S. Constitution provides that federal courts have jurisdiction over "all Cases . . . arising under this Constitution, the Laws of the United States, and Treaties made . . . under their Authority." In discussing what constitutes a "Case" over which a federal court has jurisdiction, the U.S. Supreme Court has shaped a three-prong test to determine a plaintiff's standing to bring a suit. A plaintiff must have (1) suffered a concrete, particularized, and actual or imminent injury (2) that was caused by or has a nexus to the challenged conduct and (3) is likely redressable by a favorable judicial decision. In 2016, the U.S. District Court for the District of Oregon concluded that the plaintiffs (a group of children) in *Juliana v. United States* met this test through their allegations that defendants (the President, the United States, and federal agencies) had failed to control fossil fuel use, which resulted in climate change injuries that violated the plaintiffs' due process right to a livable environment and breached defendants' obligations under the public trust doctrine. In 2020, the U.S. Court of Appeals for the Ninth Circuit reversed.

Juliana v. United States
U.S. Court of Appeals for the Ninth Circuit
947 F.3d 1159 (9th Cir. 2020)*

Before: MARY H. MURGUIA and ANDREW D. HURWITZ, Circuit Judges, and
JOSEPHINE L. STATON, District Judge. . . .

[Opinion of Circuit Judge Hurwitz:]

. . . The plaintiffs are twenty-one young citizens, an environmental organization, and a “representative of future generations.” . . . The operative complaint accuses the government of continuing to “permit, authorize, and subsidize” fossil fuel use despite long being aware of its risks, thereby causing various climate-change related injuries to the plaintiffs. Some plaintiffs claim psychological harm, others impairment to recreational interests, others exacerbated medical conditions, and others damage to property. . . . The plaintiffs seek declaratory relief and an injunction ordering the government to implement a plan to “phase out fossil fuel emissions and draw down excess atmospheric [carbon dioxide].” . . .

The government . . . argues that the plaintiffs lack . . . standing [under Article III of the U.S. Constitution] to pursue their constitutional claims. . . .

The district court correctly found the injury requirement met. . . . Jamie B., for example, claims that she was forced to leave her home because of water scarcity Levi D. had to evacuate his coastal home multiple times because of flooding. . . . [A]t least some of the plaintiffs have presented evidence that climate change is affecting them now in concrete ways and will continue to do so unless checked. . . .

. . . The causal chain here is sufficiently established. The plaintiffs’ alleged injuries are caused by carbon emissions from fossil fuel production, extraction, and transportation. A significant portion of those emissions occur in this country; the United States accounted for over 25% of worldwide emissions from 1850 to 2012, and currently accounts for about 15%. . . . About 25% of fossil fuels extracted in the United States come from federal waters and lands, an activity that requires authorization from the federal government. . . .

The more difficult question is whether the plaintiffs’ claimed injuries are redressable [T]heir sole claim is that the government has deprived them of a substantive constitutional right to a “climate system capable of sustaining human life,” and they seek remedial declaratory and injunctive relief.

* After the three-judge circuit panel dismissed the plaintiffs’ claims for lack of standing, the plaintiffs filed a petition for an *en banc* rehearing by the Ninth Circuit. The petition is pending as of June 2020.

Reasonable jurists can disagree about whether the asserted constitutional right exists. . . . But . . . “not all meritorious legal claims are redressable in federal court.” . . . [T]he plaintiffs must show that the relief they seek is both (1) substantially likely to redress their injuries; and (2) within the district court’s power to award. Redress need not be guaranteed, but it must be more than “merely speculative.”

The plaintiffs first seek a declaration that the government is violating the Constitution. But that relief alone is not substantially likely to mitigate the plaintiffs’ asserted concrete injuries. A declaration, although undoubtedly likely to benefit the plaintiffs psychologically, is unlikely by itself to remediate their alleged injuries absent further court action. . . .

We are therefore skeptical that the first redressability prong is satisfied. But even assuming that it is, the plaintiffs do not surmount the remaining hurdle—establishing that the specific relief they seek is within the power of an Article III court. There is much to recommend the adoption of a comprehensive scheme to decrease fossil fuel emissions and combat climate change, both as a policy matter in general and a matter of national survival in particular. But it is beyond the power of an Article III court to order, design, supervise, or implement the plaintiffs’ requested remedial plan. . . .

. . . [I]n some circumstances, courts may order broad injunctive relief while leaving the “details of implementation” to the government’s discretion. But, even under such a scenario, the plaintiffs’ request for a remedial plan would subsequently require the judiciary to pass judgment on the sufficiency of the government’s response to the order, which necessarily would entail a broad range of policymaking. And inevitably, this kind of plan will demand action not only by the Executive, but also by Congress. Absent court intervention, the political branches might conclude . . . that economic or defense considerations called for continuation of the very programs challenged in this suit, or a less robust approach to addressing climate change than the plaintiffs believe is necessary. . . . And, given the complexity and long-lasting nature of global climate change, the court would be required to supervise the government’s compliance with any suggested plan for many decades. . . .

. . . We reluctantly conclude . . . that the plaintiffs’ case must be made to the political branches or to the electorate at large, the latter of which can change the composition of the political branches through the ballot box. That the other branches may have abdicated their responsibility to remediate the problem does not confer on Article III courts, no matter how well-intentioned, the ability to step into their shoes. . . .

[Dissent of District Judge Staton, sitting by designation]:

. . . My colleagues throw up their hands, concluding that this case presents nothing fit for the Judiciary. On a fundamental point, we agree: No case can singlehandedly prevent the catastrophic effects of climate change predicted by the government and scientists. But a federal court need not manage all of the delicate

foreign relations and regulatory minutiae implicated by climate change to offer real relief, and the mere fact that this suit cannot alone halt climate change does not mean that it presents no claim suitable for judicial resolution.

Plaintiffs bring suit to enforce the most basic structural principle embedded in our system of ordered liberty: that the Constitution does not condone the Nation's willful destruction. So viewed, plaintiffs' claims adhere to a judicially administrable standard. And considering plaintiffs seek no less than to forestall the Nation's demise, even a partial and temporary reprieve would constitute meaningful redress. . . .

. . . [M]y colleagues are skeptical that curtailing the government's facilitation of fossil-fuel extraction and combustion will ameliorate the plaintiffs' harms. I am not, as the nature of the injury at stake informs the effectiveness of the remedy. . . .

. . . [P]laintiffs have a constitutional right to be free from *irreversible and catastrophic climate change*. . . . [T]he injury at issue is not climate change writ large; it is climate change beyond the threshold point of no return. As we approach that threshold, the significance of every emissions reduction is magnified.

The majority portrays any relief we can offer as just a drop in the bucket. . . . But we are perilously close to an overflowing bucket. These final drops matter. *A lot*. Properly framed, a court order—even one that merely postpones the day when remedial measures become insufficiently effective—would likely have a real impact on preventing the impending cataclysm. Accordingly, I conclude that the court could do something to help the plaintiffs before us.

And “something” is all that standing requires. . . .

The majority laments that it cannot step into the shoes of the political branches, but appears ready to yield even if those branches walk the Nation over a cliff. This deference-to-a-fault promotes separation of powers to the detriment of our countervailing constitutional mandate to intervene where the political branches run afoul of our foundational principles. . . . [T]he doctrine of judicial review compels federal courts to fashion and effectuate relief to right legal wrongs, even when—as frequently happens—it requires that we instruct the other branches as to the constitutional limitations on their power. . . .

. . . [T]he majority nonetheless suggests that this case is “special”—and beyond our redress—because plaintiffs' requested relief requires (1) the messy business of evaluating competing policy considerations to steer the government away from fossil fuels and (2) the intimidating task of supervising implementation over many years, if not decades. I admit these are daunting tasks, but we are constitutionally empowered to undertake them. There is no justiciability exception for cases of great complexity and magnitude. . . .

The majority also expresses concern that any remedial plan would require us to compel “the adoption of a comprehensive scheme to decrease fossil fuel emissions and combat climate change[.]” Even if the operative complaint is fairly read as requesting an affirmative scheme to address all drivers of climate change, however caused, such an overbroad request does not doom our ability to redress those drivers implicated by the conduct at issue here. Courts routinely grant plaintiffs less than the full gamut of requested relief, and our inability to compel legislation that addresses emissions beyond the scope of this case . . . speaks nothing to our ability to enjoin the government from exercising its discretion in violation of plaintiffs’ constitutional rights. . . .

Where is the hope in today’s decision? Plaintiffs’ claims are based on science, specifically, an impending point of no return. If plaintiffs’ fears, backed by the government’s own studies, prove true, history will not judge us kindly. When the seas envelop our coastal cities, fires and droughts haunt our interiors, and storms ravage everything between, those remaining will ask: Why did so many do so little? . . .

Courting Disaster

R. Henry Weaver and Douglas A. Kysar (2017)*

. . . [C]limate change threatens to routinize catastrophe. . . . These catastrophes, in turn, destabilize the normative order established by law. . . . To deny catastrophe’s power—and to avoid a descent into nihilism—law must reframe even these biblical floods as human injustices. . . . [W]e consider the ability of tort law to accomplish that reframing.

In the Anglo-American legal tradition, tort helps to define law’s normative reach. . . . Tort establishes standards of behavior—duties—in a way that makes tort law generalist, majoritarian, and persistent. It is *generalist* in the sense that it is comprehensive: the court must always choose whether to accept or reject a plaintiff’s plea for relief. . . . Even wrongs not yet socially perceived as such may be brought to a court’s attention and the complaining party will be entitled to a response. The pronouncements of tort law are *majoritarian* because tort understands itself to enforce collective standards of conduct, even if courts are not directly responsive to electoral results. Finally, the norms of tort are *persistent* in the sense that they are more resistant to sudden upheaval than many norms established by other legal means. These three characteristics, at least in theory, enable tort to confront catastrophe. . . .

[However, when] presented with claims of massive harm, common-law courts often find their way to a judgment for defendants. In recent years, a variety of self-limiting procedural and jurisdictional doctrines have arisen to effectuate this approach. Even when a court reaches the merits of a disaster lawsuit, it will often read doctrines

* Excerpted from R. Henry Weaver & Douglas A. Kysar, *Courting Disaster: Climate Change and the Adjudication of Catastrophe*, 93 NOTRE DAME LAW REVIEW 295 (2017). Reprinted with permission. © *Notre Dame Law Review*, University of Notre Dame. The Global Constitutionalism Seminar bears responsibility for any errors that have occurred in reprinting or editing.

narrowly—or ignore them entirely—in order to avoid an enormous recovery for the plaintiff. . . .

The central challenge for a court that seeks to define a duty of care for the climate lies in the remote and attenuated effects of greenhouse gas emissions Since the activities of no one person, entity, or even nation can influence global change . . . no one can be held responsible for the combined effect But the threat of “tipping points” and sudden, nonlinear consequences creates at least an imaginable possibility that “[a single individual’s] contribution was *the one* that pushed the planet over the edge.” Since the probability of such an event is unknowable, and its consequences irreversible, no approach other than precaution seems to respect the rights and interest of future generations. Complex systems . . . demand moral attention to issues that the proponents of risk-utility analysis would discount: precaution, distribution, and intergenerational justice. . . .

But it does not suffice to demonstrate that a duty exists. A climate change plaintiff must also show that the defendant, by its action or inaction, has breached that duty. . . . The focus on the global dimensions of climate change—its breathtaking scale and severity—may undermine the plaintiff’s case at the causation stage. . . . The orthodox principle of “but-for causation” requires that the defendant’s activity was a necessary condition of the plaintiff’s harm. But although the science of climate change is well understood, the sheer complexity of the climate system frustrates most attempts to link particular harms to greenhouse gas emissions. . . .

The claims of climate change plaintiffs challenge the assumptions that undergird traditional understandings of liability and causal attribution. Common-law courts are beckoned to learn to “think ecologically:”

Distances that seemed remote become more intimate, as the natural pathways that connect them are brought into view. Accordingly, it becomes less comfortable to maintain the traditional assumptions that “natural” and “distant” interests are less important than those that are “manmade” and “immediate.”

Thinking ecologically, courts would pay more attention to the reality of complex and catastrophic risks. Where those risks are severe, though uncertain or temporally distant, a judge would not reject the plaintiff’s claim of injury for those reasons alone. . . .

. . . [Even small] victories [for climate change plaintiffs] embody the ways in which litigation can spur urgent and creative responses to complexity and catastrophe. . . . [C]ourts can demand action from other branches of government either through injunctive relief or simple exhortation. . . . In a constitutional scheme of divided but overlapping authority, the judiciary can serve not only to temper excess but also to break up gridlock. . . . [V]iewed through the lens of legal narrative, “the creation of a

new legal claim has power wholly apart from the power of a litigation victory (or litigation loss) or a court decision.” Even in defeat, the climate change plaintiff may inspire new understandings of our confrontation with catastrophe. . . .

. . . Although tort enjoys a preferred position in some respects, given its explicit focus on collective norm articulation, . . . administrative and constitutional adjudication may serve similar ends: to rouse other branches of government to action and to dignify the narratives of individual litigants. . . .

The error of the nihilist judge is to refuse responsibility over the extraordinary and the indeterminate. . . . [C]andidly or covertly, nihilist judges abdicate their duty to decide because of the complex or dramatic nature of a harm and the remedy it seems to necessitate. For instance, judges seem to believe that, short of ordering a wholesale restructuring of the global economy, their only option in climate change litigation is to avoid exercising jurisdiction in the first place. . . . Courts will inevitably fail to mount a complete response to catastrophe, but they must try. And they may find . . . that the trying itself reshapes the normative landscape.

* * *

Even when courts find that a government has a legal duty to mitigate climate change, questions have emerged about whether that duty applies to effects taking place outside a country’s borders. On June 10, 2016, the Norwegian Government issued ten petroleum production licenses. Greenpeace Nordic Association and Nature and Youth argued that the decision violated Article 112* of the Norwegian Constitution. The Oslo District Court concluded that Article 112 imposes a duty on the state to take appropriate measures to protect the environment but that the duty did not include consideration of the environmental effects of exported Norwegian petroleum. The plaintiffs appealed to the Borgarting Court of Appeal.

* Article 112 of the Constitution of Norway provides:

Every person has the right to an environment that is conducive to health and to a natural environment whose productivity and diversity are maintained. Natural resources shall be managed on the basis of comprehensive long-term considerations which will safeguard this right for future generations as well. . . .

The authorities of the state shall take measures for the implementation of these principles.

**Greenpeace Nordic Association and Nature and Youth v. Ministry of
Petroleum and Energy**

Borgarting Court of Appeal, Norway

Case No. 18-060499ASD-BORG/03 (2020)*

[Judges Eirik Akerlie, Hedda Remen, and Thom Arne Hellerslia:]

. . . Decisions in cases involving fundamental environmental issues often entail political balancing and prioritisation . . . [that] should be made by popularly elected bodies and not by the courts. Judicial review in this area might juridify topics that are at the centre of the political debate. In this case, this consideration comes to the fore, in that Norway's most important industry [(petroleum activities)] and what many . . . believe is the most important environmental challenge the world is facing [(climate change)] are arrayed against each other. . . . The environment is fundamental . . . for humans' living conditions, and . . . it does not seem unnatural to understand Article 112 to mean . . . the courts must be able to set a limit on the Government's actions. . . .

. . . However, . . . not all environmental harm is covered. . . . The severity of the environmental harm will thus be the key criterion

An initial question is whether the emissions resulting from the decision being challenged are to be assessed in isolation from or together with other emissions that in total contribute to the climate changes. . . . [E]ach individual emission in Norway [and] the total emissions from Norwegian petroleum activities . . . are marginal when compared with the total global emissions. Article 112 of the Norwegian Constitution will lose its function as a limit for this type of emissions if the harmful effects are only assessed in isolation Concern for effective protection therefore indicates that even though the starting point must be emissions resulting from the decision being challenged, the total effect on the climate and how the emissions are included in other emissions must also be examined. . . .

The international aspect of the climate issue leads to another question: Is it only the effects of the climate change in Norway that are relevant, or the global effects as well? . . . The wording—"every person has the right to an environment . . ."—is entirely general in nature. . . . [A]t the same time . . . the Norwegian Constitution does not grant global rights but instead has a limited scope of application—jurisdiction, both personal and territorial. Other provisions in the human rights chapter also use terms such as "every person" and "no person," while at the same time it is clear that some form of association with Norway is required before the provisions can be invoked [I]t must

* Greenpeace Nordic Association and Nature and Youth filed an appeal of the Borgarting Court of Appeal's decision before the Supreme Court of Norway. The Supreme Court granted the leave to appeal on April 20, 2020.

be assumed that Article 112 . . . protects against the consequences [of] environmental harm . . . in Norway.

It can be questioned whether the scope of application is expanded for actions that are based in Norway but result in environmental harm in other countries. The international law “no harm” principle means that a state is obliged to prevent environmental harm in neighbouring countries and possibly provide compensation for it. . . . However, the principle has been developed with the intention of assigning responsibility for harmful actions, whereas Article 112 of the Norwegian Constitution involves an individual’s right to an environment. . . . [T]he principle has not been expressed in the wording of Article 112, nor have any clear references been made to the principle in the preparatory works. The key will therefore have to be the effects arising in Norway. . . .

. . . [I]t is uncertain whether the production licences will at all be followed up with production of petroleum and thereby lead to emissions, and in that event how much. If commercially exploitable discoveries are made, the largest emissions will occur through combustion after export. . . . [Even when] the emissions from the combustion are also included, the significance will . . . be marginal in comparison with total global emissions. . . .

The emissions from the combustion must also be assessed in a wider context, against the total emissions. The targets in the Paris Agreement mean that the total global emissions must be reduced dramatically and in the course of a brief time. . . .

. . . [H]owever, a gradual phasing out of Norwegian exports of oil and gas] does not necessarily mean that the world’s energy requirements . . . will be covered in a more climate-friendly manner. If gas is replaced by coal, cuts in gas exports will have a negative CO₂ effect. If gas is replaced by alternative energy sources, the effect will be positive. If the gas competes with gas from other suppliers, the effect might be nil. . . . The actual significance of Norwegian exports of oil and gas for global emissions is therefore complicated and controversial

. . . [E]ven if the significance of the global emissions is dramatic, it will be the environmental effects in Norway that are the key issue for the assessment under Article 112 of the Norwegian Constitution The effects in Norway may be serious enough, but they appear to be more limited and of a different nature than the global effects. A number of measures have been put in place to limit the effects in Norway. . . .

. . . [T]he risk of local environmental harm is so low that the decision is not contrary to Article 112 of the Norwegian Constitution. . . .

* * *

Between October 2019 and January 2020, the Constitutional Council of France upheld three measures developed by Parliament as appropriately balancing respect for

constitutional rights with the need to prevent additional harm to the environment. In a sequence of three cases, the Council identified the environment as a factor to be accounted for under French law. In *Total v. Prime Minister*, the Council permitted the levy of a tax incentivizing the use of renewable biofuels. In a second case not excerpted here, the Council for the first time reviewed a nonbinding programming law for compliance with the French Charter for the Environment. In *UIPP v. Prime Minister*, the Council clarified that environmental protection is an “objective of constitutional value” and applies beyond France’s borders. These three decisions can be seen as marking the emergence of a distinctive and new form of “green” jurisprudence.

Total v. Prime Minister
Constitutional Council of France
Decision No. 2019-808 QPC (2019)*

[President Laurent Fabius, Judges Claire Bazy Malaurie, Alain Juppé, Dominique Lottin, Corinne Luquiens, Nicole Maestracci, Jacques Mézard, François Pillet, and Michel Pinault delivered the opinion of the Constitutional Council of France:]

The Council of State brought a constitutional challenge to the Constitutional Council on July 24, 2019. This challenge was posed on behalf of the company Total Raffinage France[, which operates in the petroleum industry.]

1. Article 266 *quindecies* of the code of customs, in the form resulting from the law of December 28, 2018 . . . , instates a tax incentivizing the incorporation of biofuels. The last paragraph under section 2 of section B of paragraph V states: “Products with a base of palm oil are not considered to be biofuels.”

2. The petitioning company challenges the fact that these provisions exclude biofuels produced from palm oil from the favorable tax regime First of all, the petitioners claim that this exclusion, without providing any possibility for demonstration of an absence of environmental toxicity for certain forms of palm oil cultivation, does not match the objective of the legislature of increasing the incorporation of renewable energy in fuels in order to fight against greenhouse gas emissions. Second of all, the petitioning company claims that the contested provisions institute an unjustified difference in treatment between fuels based in palm oil and those issued from other oleaginous plants This would result in a violation of the [principle] of equality

3. . . . In virtue of Article 34** of the Constitution, the legislature determines the rules according to which contributions must be assessed in respect of constitutional

* Translation by Sofea Dil (Yale Law School, J.D. Class of 2021).

** Article 34 of the Constitution of France provides:

Statutes shall determine the rules concerning . . . the base, rates, and methods of collection of all types of taxes

principles and taking into account the characteristics of each tax. In particular, in order to ensure respect of the principle of equality, the legislature must found its assessment in criteria that are objective and rational as they relate to the goals proposed. . . .

5. . . . [R]aw materials that, even though they satisfy the criteria for durability [in the definition of renewable energy], damage the environment under the two cumulative patterns that follow do not count beyond a certain energy threshold: on one hand, the cultivation of these raw materials and their use for the production of biofuels presents an elevated risk of indirectly inducing an increase in greenhouse gas emissions that neutralizes the reduction in emissions that results from the substitution of these biofuels for fossil fuels; on the other hand, the expansion of the farms [for these raw materials] takes place on land that includes a large amount of carbon However, these measures . . . do not apply to biofuels issued from such raw materials where they were produced in “particular conditions” that permit the avoidance of the elevated risk

6. The contested provisions . . . [exclude] all possibility of demonstrating that that oil was produced in [such] particular conditions

7. First, it is clear from the [legislative] preparatory work that, in instituting the tax . . . , the legislature aimed to fight against worldwide greenhouse gas emissions. To this end, it sought to reduce both direct emissions, notably those issued from fossil fuels, and indirect emissions, caused by the substitution of agricultural cultivation that produces biofuels in the place of that which is meant to produce food

8. Second, in adopting the contested provisions, the legislature based its reasoning in the idea that palm oil stands out in the strong development and the impressive extension of the surface of the Earth consecrated to its production, in particular in areas rich with carbon, which results in deforestation and the drying out of wetlands. The legislature thus took into account the fact that palm oil cultivation presents a heightened risk It is not the duty of the Constitutional Council, which does not have a general power of assessment and decision-making of the same nature as that of the Parliament, to reassess the legislature’s judgment of the environmental consequences of the cultivation of the raw materials in question, as that judgment is not, in the present state of knowledge, manifestly inadequate with regard to the pursued general objective of environmental protection.

9. Consequently, . . . the legislature has . . . implemented objective and rational criteria as related to the pursued goal. The grievance . . . must therefore be dismissed.

10. The contested provisions . . . must be declared constitutional.

* * *

Following *Total*, in December 2019, the French Parliament proposed new programming laws, which are specific executive policies that must be reviewed and

approved by the French National Assembly, as required under French administrative law. Although programming laws are not binding on the government, they announce political agendas and intentions. The law at issue called for full decarbonization of the land transport sector by 2050 and set a number of intermediate targets. Prior to the promulgation of the law, some members of parliament requested ex ante constitutional review from the Constitutional Council. The parliamentarians believed the envisioned measures were not ambitious enough and would lead to a violation of Article 1 of the constitutional Charter for the Environment, which provides that “[e]veryone has the right to live in a balanced and healthy environment.”

In prior cases, the Constitutional Council had refused to exercise control over programming provisions because they lack legal force. In its December 2019 decision on the new programming law (Decision No. 2019-794 DC), the Council decided to review the law in light of the Charter for the Environment, thereby ensuring a role for the Council to monitor the fidelity of nonbinding policy pronouncements with the Charter. Here, the Council ruled that the objectives of achieving full decarbonization of the land transport sector by 2050 did not violate Article 1 of the Charter.

One month later, the French Union of Plant Protection Industries (UIPP) and the French Union for Seed Companies (UFS) requested that the Constitutional Council rule on the constitutionality of an amendment to the Rural and Maritime Fishing Code.

UIPP v. Prime Minister
Constitutional Council of France
Decision No. 2019-823 QPC (2020)*

[President Laurent Fabius, Judges Claire Bazy Malaurie, Alain Juppé, Dominique Lottin, Corinne Luquiens, Nicole Maestracci, Jacques Mézard, François Pillet, and Michel Pinault delivered the opinion of the Constitutional Council of France:]

The Council of State submitted this matter to the Constitutional Council . . . for a . . . ruling of constitutionality. The question is whether paragraph IV of Article L.253-8 of the Rural and Maritime Fishing Code, as amended by Law No. 2018-938 of October 30, 2018 . . . , conforms with the rights and liberties guaranteed by the Constitution. . . .

1. Paragraph IV of Article L.253-8 of the Rural and Maritime Fishing Code, as amended by the aforementioned law of October 30, 2018, provides:

As of January 1, 2022, the production, storage, and circulation of phytopharmaceutical products** containing unapproved active substances are prohibited because of their harmful effects on human,

* Translation by Neil Alacha (Yale Law School, J.D. Class of 2021).

** Phytopharmaceutical products are medicines with plant-based active substances.

animal, and environmental health

2. According to the applicant, . . . prohibiting the exportation of [these] products would be . . . contrary to free enterprise.

3. Free enterprise is enshrined in Article 4* of the Declaration of Human and Civic Rights of 1789.

4. The Preamble of the Charter for the Environment provides:

The future and very existence of mankind are inextricably linked with its natural environment; The environment is the common heritage of all mankind; . . . Care must be taken to safeguard the environment along with the other fundamental interests of the Nation; In order to ensure sustainable development, choices designed to meet the needs of the present generation should not jeopardize the ability of future generations and other peoples to meet their own needs.

The protection of the environment, the common heritage of mankind, thus constitutes an objective of constitutional value.

5. According to the eleventh paragraph of the Preamble of the Constitution of 1946, the Nation “shall guarantee to all . . . the protection of health.” Protection of health is thus an objective of constitutional value.

6. It is the role of the legislature to ensure the balance of these objectives with the exercise of free enterprise. As such, the legislature is entitled to consider the extraterritorial effects on the environment of activities carried out in France. . . .

10. In prohibiting French companies from selling these products to the rest of the world, the legislature has . . . mitigated the harms that can result to human health and the environment, even outside the European Union. This restriction on free enterprise aligns with the following objectives of constitutional value: the protection of health and the environment.

11. Moreover, in delaying the entry into force of the prohibition . . . until January 1, 2022, the legislature has allowed the affected companies a period of more than three years to adapt their activity.

* Article 4 of the Declaration of Human and Civic Rights of 1789 provides:

Liberty consists in being able to do anything that does not harm others: thus, the exercise of the natural rights of every man has no bounds other than those that ensure to the other members of society the enjoyment of these same rights. . . .

12. . . . [I]n adopting the provisions at issue, the legislature has ensured a conciliation between free enterprise and the protection of health and the environment that is not manifestly unbalanced. The claim regarding free enterprise is thus dismissed.

13. Paragraph IV Article L.253-8 of the Rural and Maritime Fishing Code . . . must be declared consistent with the Constitution. . . .

* * *

The Constitutional Council deduced “objectives of constitutional value” based on its interpretation of the French Constitution and the Declaration of Human and Civic Rights. In *UIPP*, the Constitutional Council recognized for the first time that the protection of the environment “constitutes an objective of constitutional value.” Thus, environmental protection is now a norm upon which the legislature may place restrictions on other constitutional rights or freedoms. The Council judged that it is up to the legislature to ensure that objectives of constitutional value—including protection of the environment, health, and the right of free enterprise—are appropriately balanced.

The Constitutional Council also relied on the idea that the environment is “the common heritage of all mankind” to empower the French parliament to account for the effects that activities carried out in France may have on the environment abroad. The legislature in this case intended to prevent companies established in France from participating in the sale of the phytopharmaceutical products anywhere in the world and thus, indirectly, in the resulting damage to human health and the environment.

Professor Daniel C. Esty explains the impact in the excerpt below.

Toward a Sustainable Future

Daniel C. Esty (2020)*

. . . The French judiciary has . . . become a driving force for a sustainable future . . . and action on climate change Along with the . . . *Urgenda* case in the Netherlands, courts in Ecuador, Columbia, Pakistan, Britain, Nigeria, and the Philippines have . . . issued decisions holding both governments and private parties to account for violating environmental principles or falling short of sustainability requirements. But judges and justices in other nations, including most notably the United States, have been more circumspect in their approach [I]n the *Juliana* case in Oregon, the trial court held that the youth plaintiffs had met the burden of demonstrating injury from climate change and could proceed with their legal action to have their rights against government inaction vindicated. But the Appeals Court above reversed this decision and dismissed the case, noting that the only remedy lay with the

* Excerpted from a 2020 draft of Daniel C. Esty, *Toward a Sustainable Future: Environmental Jurisprudence from France’s Constitutional Council Breaks New Ground*, ANNUAL REVIEW OF THE FRENCH CONSTITUTIONAL COUNCIL (forthcoming 2020).

legislative or executive branches of government—a conclusion that reflects the lack of any mention of the environment in the U.S. Constitution.

Against this backdrop, the sustainability leadership of the French Constitutional Council stands out all the more. The Council’s clear perspective on the need to move toward a sustainable future and willingness to articulate environmental principles—and thus promote action to combat climate change—has blazed a trail that other courts in other countries will surely follow. Perhaps more importantly, the global scope of the environment that the Council has highlighted as being of concern may have important implications . . . in terms of responsibility for harm to the Global Commons. Indeed, the *UIPP* decision could mean not only that French companies will be held accountable for environmental damage (and even the risk of harm) beyond French territory, but that same vision of global responsibility might also imply that foreign companies operating in France could be called to account for the environmental harm they cause anywhere in the world.

* * *

In addition to domestic constitutional questions, courts also face questions of how to evaluate obligations established by international agreements. In many jurisdictions, this issue has taken on heightened significance in light of the Paris Climate Change Agreement. For example, in late 2015, the government of the United Kingdom began seeking proposals to expand the London airports’ runway capacity. The Secretary of State for Transport established criteria for approving a proposal through the “Airports National Policy Statement” (ANPS). In August 2018, various British NGOs challenged the ANPS, arguing that section 5(8)* of the U.K. Planning Act required the Secretary to account for the U.K.’s commitments under the Paris Agreement and that the Secretary had failed to do so. The Divisional Court determined that the Secretary was not obligated to consider the Paris Agreement in the ANPS and that the Secretary properly considered domestic climate change policies. These plaintiffs appealed to the U.K. Court of Appeal.

* Section 5(8) of the United Kingdom Planning Act of 2008 provides:

The reasons [provided for a national policy statement] must (in particular) include an explanation of how the policy set out in the statement takes account of Government policy relating to the mitigation of, and adaptation to, climate change.

R v. Secretary of State for Transport
U.K. Court of Appeal (Civil Division)
[2020] EWCA Civ 214*

Lord Justice Lindblom, Lord Justice Singh and Lord Justice Haddon-Cave:

. . . 184. The issues concerning the United Kingdom’s commitments on climate change can conveniently be simplified, and dealt with, under [this heading]: “ . . . [D]id the Government’s commitment to the Paris Agreement constitute government policy on climate change, which the Secretary of State was required to take into account?” . . .

186. It is common ground that the Secretary of State did not take the Paris Agreement into account in the course of making his decision to designate the ANPS. . . .

209. In the Government paper, “The Clean Growth Strategy” first published in 2017, the Secretary of State for Energy and Industrial Strategy stated:

“ . . . The actions and investments that will be needed to meet the Paris commitments will ensure the shift to clean growth will be at the forefront of policy and economic decisions made by government and businesses in the coming decades.” . . .

213. On 24 March 2016, the Rt. Hon. Amber Rudd MP, then Secretary of State for Energy and Climate Change, said, in answer to an oral question on what steps her department was taking to enshrine the commitment to net zero emissions made at the Paris Climate Change Conference:

“As confirmed last Monday during the Report stage of the Energy Bill, the Government will take the step of enshrining into UK law the long-term goal of net zero emissions, which I agreed in Paris last December. The question is not whether we do it but how we do it.”

214. On 14 June 2018, the Chair and Deputy Chair of the Committee on Climate Change [(CCC)] . . . wrote a letter to the Secretary of State for Transport . . . in the following terms:

“The UK has a legally binding commitment to reduce greenhouse gas emissions under the Climate Change Act. The Government has also committed, through the Paris Agreement, to limit the rise in global temperature to well below 2°C and to pursue efforts to limit it to 1.5°C.

* Heathrow Airport and potential runway developer Arora Holdings applied for permission to appeal the Court of Appeal decision to the Supreme Court of the United Kingdom. The Supreme Court granted permission on May 6, 2020, and the appeal is pending as of June 2020.

We were surprised that your statement to the House of Commons on the National Policy Statement on 5 June 2018 made no mention of either of these commitments. It is essential that aviation's place in the overall strategy for UK emissions reduction is considered and planned fully by your Department. . . . ”

The Airports Commission also incorporated the CCC's advice on aviation, concluding that “any change to [the] UK's aviation capacity would have to take place in the context of global climate change, and the UK's policy obligations in that area.” . . .

216. . . . [I]t was the Government's expressly stated policy that it was committed to adhering to the Paris Agreement to limit the rise in global temperature to well below 2°C and to pursue efforts to limit it to 1.5°C. . . .

224. . . . [I]t is important to appreciate that the words “Government policy” are words of the ordinary English language. They do not have any specific technical meaning. They should be applied in their ordinary sense to the facts of a given situation. In particular, we can find no warrant in the legislation for limiting the phrase “Government policy” to mean only the legal requirements of the Climate Change Act. The concept of policy is necessarily broader than legislation. . . .

226. . . . [T]he debate . . . about the possible impact of an international agreement on domestic law that has not been incorporated by legislation enacted by Parliament was a distraction from the true issue. That debate . . . did not bear on the proper interpretation of a statutory provision deliberately and precisely enacted by Parliament itself, in the words of section 5(8) of the Planning Act. . . . [T]hose words do not require the Secretary of State to act in accordance with any particular policy; but they do require him to take that policy into account and explain how it has been taken into account. None of that was ever done in the present case.

227. It appears . . . that the Secretary of State received legal advice that not only did he not have to take the Paris Agreement into account but that he was legally obliged not to take it into account at all. . . . [T]hat was a clear misdirection of law and there was, therefore, a material misdirection of law at an important stage in the process. That misdirection then fed through the rest of the decision-making process and was fatal to the decision to designate the ANPS itself.

228. . . . [T]he Government's commitment to the Paris Agreement was clearly part of “Government policy” by the time of the designation of the ANPS. First, this followed from the solemn act of the United Kingdom's ratification of that international agreement in November 2016. Secondly, as we have explained, there were firm statements re-iterating Government policy of adherence to the Paris Agreement

230. Furthermore, it simply requires the executive to take account of its own policy commitments. After all, the acts of negotiating, signing and ratifying an

international treaty are all acts which under the British constitution are entrusted to the executive branch of the State—the Crown. . . . [R]equiring the Crown to comply with what has been enacted by Parliament (in this case the obligations in section 5(8) of the Planning Act) is an entirely conventional exercise in public law. . . .

238. Again, . . . it does not follow from this that the Secretary of State was obliged to act in accordance with the Paris Agreement or to reach any particular outcome. The only legal obligation, in our view, was to take the Paris Agreement into account when arriving at his decision. . . .

246. . . . [N]o matter how wide the margin of judgment to be afforded to the Secretary of State in this context, in our view the Paris Agreement was obviously relevant to the plan or programme under consideration in this case. . . .

254. . . . It will suffice that the preparation and designation of the ANPS will be remitted to the Secretary of State for reconsideration in accordance with the law, during which exercise the Secretary of State can take these further matters into account

* * *

What remedies are available in climate change litigation? In Pakistan, Article 199(1)* of the Constitution empowers Pakistan's five High Courts to order the government to perform a broad set of legally required actions. Pakistani courts have also fashioned special writs of mandamus that enable the court to continuously monitor whether the government is complying with court orders. In *Sheikh Asim Farooq v. Federation of Pakistan*, the Lahore High Court received a petition under Article 199 asking the Court to order federal and Punjab provincial authorities to take actions to protect Pakistan's dwindling forests.

Sheikh Asim Farooq v. Federation of Pakistan
Lahore High Court, Lahore Judicial Department, Pakistan
Writ Petition No. 192069 of 2018 (2019)

[Opinion of Judge Jawad Hassan:]

* Article 199(1) of the Constitution of the Islamic Republic of Pakistan, 1973 provides:

Subject to the Constitution, a High Court may, if it is satisfied that no other adequate remedy is provided by law,—

(a) . . . make an order . . . directing a person performing . . . functions in connection with the affairs of the Federation, a Province or a local authority, to . . . do anything he is required by law to do; . . .

(c) . . . make an order giving such directions to any person or authority, including any Government exercising any power or performing any function . . . as may be appropriate for the enforcement of any of the Fundamental Rights

8. . . . [T]he forests in Pakistan and in Punjab are close to extinction. . . . [F]or decades, there has been no improvement or enlargement of forest areas or plantation of trees in private areas, and . . . Respondents have failed to regulate . . . what type of trees are to be planted in a particular locality that would be environment friendly, provide maximum canopy and produce more oxygen. . . .

20. In the instant public interest petition, the Petitioners have . . . sought directions to the relevant ministries, departments and other authorities of the Provincial or Federal Government under Article 199 of the Constitution to plant, protect, manage, preserve and conserve the trees and forests in Punjab. . . .

22. Public Interest Litigation . . . is a powerful tool for individuals and groups for combating illegalities, injustice and social ills which promotes and protects the larger public interest in case of violation of any fundamental rights. As long as the public interest prayed for is bonafide and not based on any vested interests, the principles of locus standi/aggrieved person are to be interpreted liberally by the Courts. . . . The Respondents are under a Constitutional obligation to protect the Fundamental Rights of the public at large

25. . . . [The international environmental law] Principles of Sustainable Development, Precautionary Principle, Public Trust doctrine, Inter- and Intra-Generational Equity, Water Justice and Food Justice, In Dubio Pro Natura [(when in doubt, favor nature), and] Polluter Pays . . . are part of our jurisprudence developed by our Supreme Court.

26. Article 9* [of the Constitution of Pakistan] guarantees the right to life which includes the right to a clean and healthy environment. Our superior courts have interpreted the right to life to include a number of natural and legal rights under the umbrella of Article 9 such as the right to a clean environment

27. The Interpretation of Fundamental Rights has to be dynamic and progressive and not pedantic. . . . Respondents are bound to formulate policy/law for the protection of the Fundamental Rights of the Citizens, namely the survival, economic and social uplift of the people of Pakistan. . . .

[The court described more than a dozen regional and federal statutes and policies that require the government to protect and replenish Pakistan's forests in light of its constitutional and international legal obligations.]

81. This petition was filed in order to highlight inactions of the Respondents . . . for not implementing the laws, policies and strategies regarding protection of forest of Pakistan and to implement them by passing certain directions . . . to perform their duties

* Article 9 of the Constitution of the Islamic Republic of Pakistan, 1973 provides:

No person shall be deprived of life or liberty save in accordance with law.

as per law. . . . Had [the] above-mentioned laws and policies properly been implemented by the Respondents . . . , the forest of Pakistan could have been saved [from] further depletion and deforestation. . . . [E]nvironmental treaties and conventions and various laws and policy have been made to protect the environment, conserve and preserve the forests but in this regard these policies [and] laws have not been implemented

83. . . . [T]his Court allows this writ of *mandamus* under Article 199(1)(a)(i) of the Constitution and direct[s] the Government Departments [to perform] their functions . . . as follows:

(1) All the applicable laws and the relevant directions and judgments of the [Superior Courts] shall be implemented . . . to plant, protect and preserve the forest.

(2) All the Respondents shall take steps to protect, manage and conserve the forests and trees in the Urban Areas . . . [and] enlarge the forests and trees in Pakistan and the Punjab. . . .

(4) Every responsible Ministry, Division, Department and Authority . . . shall publish [an annual report that discusses the expansion of forests, tree planting campaigns in Urban Areas, and actions taken to comply with the law.]

(5) The competent authority is directed to impose the penalty against the relevant officers for omission of their duties

(6) . . . [H]ousing societies and authorities [should be directed to plant two trees in front of each house and to impose penalties for non-compliance.] . . .

(8) . . . [D]ue to the efforts of the Government and other Departments, this year massive tree plantation took place. The same or more effort must be done and monitored by the relevant authorities each year through proper [bookkeeping.]

(9) The [Forestry, Wildlife and Fisheries] Department shall . . . through the media and other means, inform the public and create awareness, including lodging a complaint for any violation of [laws related to deforestation]

(10) . . . [The Local Government, the Parks and Horticulture Authority, the Defense Housing Authority, the Lahore Development Authority, and other relevant authorities] are directed to define a mechanism for urban forestation

(11) A specific officer may be appointed in a designated area to deal with the issues related to the trees and forest If any citizen . . . feel[s] the need of plantation of trees, such relevant officer may address [the grievance by planting trees.]

(12) All the authorities . . . are directed to make and adopt comprehensive policies with respect to plantation of trees in urban areas, . . . immediately start planting

of trees . . . and maintain the same by imposing fine and penalty to the officers of the area or any citizen.

(13) . . . [Schools,] colleges, higher education institutions, hospitals, [and] parking sites . . . are specifically directed to make policy for planting . . . trees in open spaces

(14) The Government of the Punjab through its respective departments shall make laws . . . imposing penalty and heavy fine for cutting, removing and damaging any tree

CORPORATE AND GOVERNMENT OBLIGATIONS

Climate change litigation raises both familiar and new questions about what obligations flow to private corporations or governments when they know about their impact on the climate. One set of questions relates to what is knowable, who knows what, and when they know. Another set of issues involves how courts should respond to the systemic repression of information or can engage with problems regarding the quality of knowledge. These issues gain heightened salience given the prevalence of vehement denials of climate change, sometimes stemming from people in government.

Obligations to Know and to Publicize

The availability of information about polluting activities plays a central role in the public's ability to enforce its environmental rights. Governments and corporations at times shield information about their polluting practices in an effort to avoid restrictions on their activities. Faced with these barriers, members of the public sometimes turn to courts to gain access to information. These legal challenges raise several questions. To what extent does the common right to a healthy environment require access to information? What information must be shared, and who ought to provide it? When must that information be shared, and with whom? And how should courts weigh corporate interests in privacy and their commercial interests when in conflict with environmental rights? The two cases excerpted below, involving Italy and Mexico, explore governments' obligation to share information about the consequences of environmental harms.

Cordella v. Italy
European Court of Human Rights (First Section)
Application No. 54414/13 and 54264/15 (2019)*

The European Court of Human Rights (First Section), sitting as a Chamber composed of: Linos-Alexandre Sicilianos, president, Guido Raimondi, Ledi Bianku, Aleš Pejchal, Krzysztof Wojtyczek, Tim Eicke, Gilberto Felici, judges, . . . delivers the following judgement . . . :

. . . 8. Specializing in the production and transformation of steel, the company Ilva started operating in the steelmaking sector [in Italy] at the beginning of the 20th century The State was its principal shareholder.

9. Its establishment in Taranto (Puglia) began operations in 1965.

10. In 1995, Ilva was privatized, having been purchased by the group Riva. Taking account of its state of insolvency, it was then placed under provisional administration. . . .

12. All production in the zone in question was thus transferred to Taranto. The establishment located in that city constitutes the company's largest site and the biggest industrial steelworking complex in Europe. . . .

13. The petitioners reside or used to reside in the city of Taranto (which has about 200,000 inhabitants) or in neighboring communities. . . .

14. The impact of the emissions produced by the factory on the environment and on the health of the local population was the subject of many scientific reports. [These reports noted the "high environmental risk" for local populations within Taranto and its vicinity based on empirical evidence of increased frequency of tumors and a higher tumor mortality rate. They linked proximity to emissions sites to the increased development of lung tumors and other health issues.] . . .

35. . . . [B]y the decree n° 196 of November 30, 1998, the President of the Republic approved the plan for depollution. This decree concerned the entire zone labeled as "at high environmental risk." [The regional council of Puglia and the Minister of the Environment issued a series of measures over the next twenty years enumerating limits on Ilva's industrial activities designed to preserve the environment around the factory. The first of the measures made by the Minister of the Environment, named Integrated Environmental Authorizations (AIA), was issued in 2011. Despite unsatisfactory engagement with the measures, the regional council also issued a number of decrees over that time delaying requirements for Ilva's compliance. One such order was challenged before the Italian Constitutional Court, which found it unconstitutional

* Translation by Sofea Dil (Yale Law School, J.D. Class of 2021).

for failing to prioritize the constitutional rights to health and life. Another order was notable for establishing criminal and administrative immunity for measures taken in pursuit of the environmental plan.] . . .

66. Starting in 2016, Ilva was the subject of sales negotiations . . . which are still in process.

67. In the frame of the “Urgent Provisions for the Establishment of a Procedure for the Transfer of Ilva’s Business Activities” planned by the decree n° 98 of June 9, 2016, it was decided that the delay in execution of the environmental plan could be prorogated by the future buyer for a period of no more than eighteen months. It was also decided that the delay would be applied to all other measures of environmental oversight related to Ilva and that it would replace all other delays having not yet expired at the date of the decree’s entry into force.

68. It was equally established that the future buyer . . . could make the offer for purchase dependent on modifications of the environmental plan Finally, . . . the administrative and criminal immunities were extended to the future buyer of the establishment.

69. In application of the decree of the President of the Council of Ministers of September 29, 2017, the delay in execution of the planned measures in the environmental plan was extended to the month of August 2023. . . .

94. . . . [The Court] judges it appropriate to examine the allegations of the petitioners uniquely through the lens of Article 8 of the Convention. . . .

157. . . . [G]rave transgressions of the environment can affect people’s well-being and deprive them of the enjoyment of their home in a manner that harms their private life. . . . [I]n cases where the notion of a threshold of graveness has been specifically examined in the context of the environment, . . . a grievance can be found to be defensible under Article 8 if the ecological risk reaches a level of graveness that notably diminishes the capacity of the petitioner to enjoy their home or their private or family life. The estimation of this minimum level in this type of case is relative and depends on all of the facts submitted, notably the intensity and the duration of the nuisances as well as their physical or psychological consequences for health or the quality of life of the interested person.

158. Article 8 does not limit itself to requiring the State to abstain from arbitrary mismanagement: we can add to this rather negative engagement positive obligations inherent in an effective respect of private life. . . . In both cases, one must have regard to the just balance to be maintained between the competing interests of the individual and the company in the overall result, with the State enjoying in all possible outcomes a certain margin of appreciation.

159. The States have above all a positive obligation, in particular in the case of a dangerous activity, to put in place a set of regulations adapted to the specificities of the said activity, notably in terms of the risk that could result from it. . . .

161. . . . [I]f it is not its duty to determine precisely the measures that the State should have taken in this case in order to effectively reduce the level of pollution, . . . the Court . . . must decide whether the national authorities handled that question with due diligence and whether they took all competing interests into consideration. . . .

163. . . . [S]ince the 1970s, several scientific studies have mentioned the polluting effects of the emissions of the Ilva factory in Taranto on the environment and public health. . . .

167. . . . [D]espite the attempts of the national authorities to facilitate the depollution of the concerned region, the projects that it put in place have not, as of today, produced the effects for which it hoped.

168. The measures . . . recommended . . . in 2012 in the framework of the AIA in order to ameliorate the environmental impact of the factory in the end were never realized In addition, the realization of the environmental plan approved in 2014 was extended to the month of August 2023. . . . [This] reveals an extreme slowness.

169. In the meantime, the government intervened many times through urgent measures in order to guarantee the continuation of the factory's production activities, and this was despite the statement by the competent judicial authorities, founded on chemical and epidemiological expertise, based in the existence of grave risks for health and the environment. Moreover, an administrative and criminal immunity was recognized for the people charged with guaranteeing the respect of environmental regulations

172. The Court must note the prolongation of a situation of environmental pollution that put in danger the health of the petitioners and, more generally, that of the entire population that resides in the zones at risk, a population that remains, currently, deprived of information related to the efforts to clean up the territory at issue

173. . . . [T]he national authorities have omitted to take all necessary measures to ensure the effective protection of the right of the interested parties to the respect of their private life.

174. Thus, the just balance to be maintained between, on one side, the interest of the petitioners in not suffering grave breaches of the environment that could affect their well-being and their private life and, on the other side, the company's interest in its plant, has not been respected. Consequently, there has been a violation of Article 8 of the Convention in this case. . . .

In June of 2017, the Mexican Energy Regulatory Commission (CRE) unilaterally modified official norm NOM-016-CRE-2016. The modification increased the maximum percentage of ethanol allowed in gasoline sold in Mexico from 5.8% to 10%. The move was, largely, an effort to reduce the price of gasoline. Under Article 51* of the Federal Law on Metrology and Normalization (FLMN), a federal agency must follow a prescribed process for changing or repealing official norms unless the agency determines that the “causes that motivated the issuance of the norm no longer exist.” CRE relied on this provision to make the change in ethanol percentage.

The change was challenged through an anonymous *amparo* lawsuit, in which an individual brings an action to remedy violations of individual or collective constitutional rights. The suit alleged that Article 51 of the FLMN violated a human and constitutional right to a healthy environment and that CRE had breached this right when it unilaterally changed the maximum allowed percentage of ethanol in gasoline sold in Mexico. Although the Second Chamber of the Mexican Supreme Court of Justice rejected the constitutional challenge to Article 51, the Court concluded that CRE’s modification of norm NOM-016-CRE-2016 violated Article 51.

Ruling on Modification to Ethanol Fuel Rule
Mexican Supreme Court of Justice (Second Chamber)
Amparo 610/2019 (2020)**

Rapporteur: Minister Alberto Pérez Dayán. Secretaries: Iveth López Vergara and Isiro Muñoz Acevedo.

. . . [C]omplainant argues that [the provision in Article 51 allowing an agency to unilaterally change or repeal an official norm if the conditions that originally led to the adoption of the norm no longer exist] is unconstitutional because it infringes upon the human right to a healthy environment, specifically with regards to the right to citizen participation on that matter, in exempting the agency from observing the regular procedure for modifying Official Mexican Norms.

. . . [T]his challenge is unfounded because . . . a correct interpretation [of Article 51] must reflect the exigencies and burdens, constitutional as well as derived from

* Article 51 of the Mexican Federal Law on Metrology and Normalization provides:

In order to modify Official Mexican Norms, an agency must comply with the procedure for the elaboration of Official Mexican Norms.

When the causes that motivated the issuance of an Official Mexican Norm no longer exist, the relevant agency, on its own initiative or through a request . . . , may modify or repeal the norm in question without following the required procedure for elaborating Official Mexican Norms.

** Translation by José Argueta Funes (Yale Law School, J.D. Class of 2019).

international conventions, imposed upon the Mexican State with regard to the human right to a healthy environment. . . .

. . . [I]n environmental matters, . . . [in order to invoke the relevant provision of Article 51,] it is imperative [that the agency] find itself before truly extraordinary facts or circumstances which enable it to conclude . . . incontrovertibly . . . that the causes which motivated the issuance of the relevant Official Mexican Norm have ceased to exist, such that, under those exceptional circumstances, avoiding the regular procedure for altering Official Mexican Norms would be justified because consulting the citizenry on irrefutable facts would lead to no practical goal.

. . . [W]e will examine the content and reach of the precautionary principle, as well as the right to citizen participation in environmental matters, and we will explain why, in this matter, the reach of [Article 51] . . . must be determined according to those constitutional axioms. . . .

[The precautionary principle] implies that “when an activity generates risks of harm to the health of humans or the environment, precautionary measures must be adopted, even if the causes-effects [of the given activity] have not been absolutely determined by science.” . . .

. . . [I]n *amparo* 365/2018, this Second Chamber established that “the right to public participation in environmental matters is reflected in diverse international instruments related to the environment and sustainable development” And although not all these instruments are binding, they nonetheless “constitute guidelines that enable us to discern the importance of public participation in environmental matters, such that this High Tribunal cannot ignore them, for they constitute guiding criteria that enable the full realization of the human right to a healthy environment, access to information, and citizen participation.” . . .

. . . [T]his Second Chamber held that these . . . international instruments revolve around the fundamental idea that “every person must have adequate access to environmental information, and to the opportunity to participate in the processes for adopting decisions from the earliest stages, in order to secure real influence in the development of measures that might . . . affect their right to a healthy environment.” . . .

. . . [W]e may conclude that the human right to a healthy environment imposes specific obligations upon the State with respect to the protection of the environment. Among these are included the duties to: . . . evaluate environmental impact and make public information related to the environment; . . . facilitate public participation in the making of environmental decisions; and . . . provide access to effective resources for the protection of environmental rights. . . .

. . . [T]he precautionary principle, applied to the modification or repeal of an Official Mexican Norm, demands that the determination on the existence of harm or a risk of environmental harm which initially led to the issuance of the Official Mexican

Norm must be carried out in the most informed way possible, through the plural participation of the members of the relevant National Consultative Committees on Normalizations and through citizen participation [That is, in order to determine whether or not the conditions that led to the norm continue to exist, the precautionary principle] demands that the ordinary procedure for modifying or repealing the given norm be carried out. . . .

. . . [F]ollowing this interpretation of Article 51 . . . , in dealing with the technical regulation of anthropogenic emissions, which have been scientifically considered as harmful or potentially prejudicial for air quality, the exceptional procedures [for modifying or repealing Official Mexican Norms] could only be invoked when manifest, reliable, and incontrovertible evidence arises supporting the conclusion that . . . such human activity presents no risk whatsoever to the environment.

That is, the only way in which it would be possible to unilaterally and summarily modify NOM-016-CRE-2016 . . . would be [if the CRE found itself] before the existence of new scientific evidence that made it possible to conclude . . . incontrovertibly . . . that the causes that motivated the issuance of the Official Mexican Norm have ceased to exist. . . .

[The Court surveyed numerous studies and submissions presented before the CRE detailing the dangers of increasing maximum ethanol percentages allowed in Mexican gasoline. The Court identified several potential harms associated with this increase, including a rise in the ozone levels in Mexican cities. It then reviewed the reasoning of the CRE in modifying the maximum ethanol percentage.]

. . . [A] decision so delicate and complex, from the environmental point of view, as deciding to alter the maximum ethanol percentage in gasoline, emerged from a simple conclusion formulated by the Mexican Petroleum Institute that it “was technically viable to introduce gasolines with up to 10% of ethanol” Of course, these [foundations] are totally . . . unacceptable as justifications for [the CRE] . . . to unilaterally and summarily modify NOM-016-CRE-2016

. . . [T]his case involves a prototypical example demanding the observance . . . of the ordinary procedure for the modification of Official Mexican Norms. . . . [W]hen the magnitude of the harms to air quality which the use of ethanol . . . could contribute to is open to debate, the principle of environmental precaution comes into full force and demands a detailed evaluation regarding the potential risks or uncertainties . . . in order to determine whether it is possible or not to modify or cancel the norm, and to what extent.

* * *

Questions of knowledge arise when corporate, governmental, and public interests in “development” clash with environmental rights. Access to information plays a central role in the public’s ability to monitor the environmental impact of industrial

activities. A Kenyan environmental group raised one such conflict before the National Environmental Tribunal of Kenya at Nairobi in 2016.

Save Lamu v. National Environmental Management Authority

National Environmental Tribunal of Kenya at Nairobi

Tribunal Appeal No. NET 196 of 2016 (2019)

[Judges Mohammed S. Balala, Christine Kipsang, Bahati Mwamuye, Waithaka Ngaruiya, and Kariuki Muigua delivered the following judgment:]

1. As part of a vision of the country's economic blueprint for development and industrialization . . . the Government of Kenya . . . formulated a power generation program. . . This program included the setting up of the intended 1050 MW coal fired power plant in Lamu to be built, owned and operated by the 2nd Respondent [Amu Power Company Limited], who were the successful bidders following an expression of interest by the Government. . . .

2. The 2nd Respondent engaged Kurrent Technologies Limited, to undertake an Environmental & Social Impact Assessment (ESIA) Study for its coal power plant in Lamu, and, upon completion, presented the same to the 1st Respondent [National Environmental Management Authority (NEMA)] . . . for licensing purposes. . . . NEMA . . . proceeded to issue an Environmental Impact Assessment Licence . . . to the 2nd Respondent

3. The 1st Appellant [(Save Lamu)], a community based organisation representing the interests and welfare of Lamu and whose membership [is] comprised of individuals and several community groups within Lamu[,] . . . filed the present appeal . . . challenging the issuance of the EIA Licence as well as the process in obtaining the same. . . .

16. The purpose of the Environment Impact Assessment (EIA) process is to assist a country in attaining sustainable development when commissioning projects. The United Nations has set Sustainable Development Goals (SDGs), which are an urgent call for action by all countries recognizing that ending poverty and other deprivations must go hand-in-hand with strategies that improve health and education, reduce inequality, and spur economic growth—all while tackling climate change

21. . . . [T]he legal regime for the issuance of EIA Licenses is anchored in [Article 69(1)(f)* of the Constitution of Kenya, which] requires the State to establish

* Article 69(1)(f) of the Constitution of Kenya provides:

The State shall . . . establish systems of environmental impact assessment, environmental audit and monitoring of the environment

systems of environmental impact assessment, environmental audit and monitoring of the environment. . . .

23. The Appellants have complained about the lack of proper and effective public participation as a ground of appeal and as one of the agreed issues. . . . The foundation of public participation can be found in Principle 10 of the Rio Declaration on Environment and Development, 1992 which states as follows:—

“Environmental issues are best handled with participation of all concerned citizens, at the relevant level. . . .”

24. . . . [A]ccess to information for the persons affected is important for meaningful participation by citizens and motivates them to participate in decision and policymaking processes in an informed manner

25. In Constitutional Petition No. 305 of 2012: *Mui Coal Basin Local Community & 15 others v Permanent Secretary Ministry of Energy & 17 others* a three judge bench of the Kenya Constitutional Court set out the minimum basis for adequate public participation as follows:—

“97. . . . [P]ublic participation in the area of environmental governance as implicated in this case, at a minimum, entails the following elements or principles:

a. First, it is incumbent upon the government agency or public official involved to fashion a programme of public participation that accords with the nature of the subject matter. . . .

b. Second, public participation calls for innovation and malleability depending on the nature of the subject matter, culture, logistical constraints, and so forth. . . .

c. Third, whatever programme of public participation is fashioned, it must include access to and dissemination of relevant information. . . .

d. Fourth, public participation does not dictate that everyone must give their views on an issue of environmental governance. . . . A public participation programme, especially in environmental governance matters must, however, show intentional inclusivity. . . .

e. Fifth, . . . there is a duty for the government agency or Public Official involved to take into consideration, in good faith, all the views received as part of public participation programme. . . .

f. Sixthly, the right of public participation is not meant to usurp the technical or democratic role of the office holders but to cross-fertilize

and enrich their views with the views of those who will be most affected by the decision or policy at hand.” . . .

35. Regulation 17 of the Environmental (Impact Assessment and Audit) Regulations 2003, required the proponent of a project to seek views of the persons to be affected after approval of the project report and during the process of the study. In particular, Regulation 17 (2) required the proponent to publicize the project and its anticipated effects and benefits

43. . . . [W]e accept that wide public participation had been undertaken during the scoping phase for the project report.

44. However, this [was] all done before the study had been commenced or conducted or the study report prepared. . . .

45. . . . [The meetings held during the scoping phase] were introductory in nature but not structured to share information on the possible effects and impacts of the project on the population and the proposed mitigation measures that the 2nd Respondent would undertake. . . . [P]articipants were given very limited time to ask questions and answers appeared inadequate [M]eetings to explain the project properly and allay the concerns of the residents never took place. . . .

47. . . . Further meetings ought to have been held to give the correct information during the conduct of a proper study and when data on most of the areas identified by the terms of reference had been collected and verified. Lack of accurate information cannot be the basis of proper and effective public participation. . . .

69. . . . A vital condition of public participation is access to information. The information contained in the study report had not been made available in good time to members of the public, or at all, nor had there been an effort to undertake the same level of engagement with the public after the EIA [(Environmental Impact Assessment)] study had been conducted and report published. The seriousness of access to information cannot be overstated. Would members of the public have supported the project if certain information in the possession of the 2nd respondent had been availed to them? For instance, . . . the observations . . . included identification of potential harm to the biodiversity flora and fauna, air quality that was stated to be potentially hazardous and may cause difficulty in breathing and the climate change effect leading to adverse consequences on human health. . . . There well may be mitigation measures to curb these impacts but it was only fair that the people of Lamu were educated on the adverse impacts identified and within the knowledge of the proponent and thereafter have the mitigation measures explained to them in order to make an informed decision That is public participation. . . .

72. . . . This Tribunal cannot permit authorities to deal so nonchalantly with such objections. Such objections need to be taken seriously and need to be considered. Public participation especially when it comes to EIAs are extremely critical and cannot be

treated as a formality or inconvenience. It is at the very core of any EIA exercise. The EIA public participation process cannot be a mechanical exercise but a vibrant and dynamic activity where affected persons are engaged in a fair and reasonable manner.

73. . . . In this case, the report was extremely bulky and purported to capture a lot of information. By all accounts, it was an impressive piece of literal work but devoid of public consultation content, in the manner prescribed by the law, thus rendering it ineffective and at best only of academic value. . . .

75. . . . [W]e have no hesitation in finding and hereby do that the process leading to the preparation of the ESIA Study Report by the 2nd Respondent was not properly conducted, had side-stepped the procedure laid out under the regulations and having done so, there was a failure of effective public participation and the procedure for the issuance of the ESIA Licence by the 1st Respondent was in violation of the elaborate procedure set out in the Environmental (Impact Assessment & Audit) Regulations and the Constitution of Kenya. . . .

156. . . . [A] fresh EIA study report is to be prepared and presented to the 1st Respondent. The 1st Respondent is directed to . . . engage with the lead agencies and the public, in the manner and strict timelines provided for under the said law. The 1st Respondent is to share its memorandum of reasons for reaching its decision whether for or against the project with the relevant parties and publish its decision on the grant or refusal to issue an EIA Licence accompanied with a summary of its reasons within 7 days of its decision. Such publication should be in a newspaper with nationwide circulation. . . .

* * *

In 2014, the Supreme Court of Appeal of South Africa faced similar questions about the purported conflict between environmental rights and industrial development in a dispute between the Vaal Environmental Justice Alliance and ArcelorMittal, a major South African steel company.

**Company Secretary of ArcelorMittal South Africa v. Vaal
Environmental Justice Alliance
Supreme Court of Appeal of South Africa
Case No. 69/2014**

[Judges MS NAVSA, SA MAJIEDT, HK SALDULKER, R MATHOPO, and BC MOCUMIE delivered the following judgment:]

[1] This case is adjudicated against the following backdrop. First, the world, for obvious reasons, is becoming increasingly ecologically sensitive. Second, citizens in democracies around the world are growing alert to the dangers of a culture of secrecy and unresponsiveness, both in respect of governments and in relation to corporations.

In South Africa, because of our past, the latter aspect has increased significance. The Legislature has rightly seen fit to cater for both aspects in legislation, driven by constitutional imperatives

[2] The present litigation stems from a refusal by the second appellant, ArcelorMittal South Africa Limited (“AM”), one of our country’s major industrial corporations producing 90% of South Africa’s steel products, of two requests by the respondent, the Vaal Environmental Justice Alliance (“VEJA”) . . . for information relating to AM’s past and present activities, including the latter’s documented historical operational and strategic approach to the protection of the environment in the Vanderbijlpark and Vereeniging areas, in each of which they operate a major steel plant.

[3] The present litigation represents . . . two competing interests, namely industrial activity . . . against concerns about the preservation of the environment for the benefit of present and future generations. . . . [T]here is, in addition, the complicating feature of the asserted entitlement to information held in private hands. . . .

[VEJA had requested a copy of AM’s Environmental Master Plan for its steel plant sites in December 2011, along with any implementation-related progress reports. In response, AM asked for a more precise description of the documents sought, referring to their “alleged existence.” VEJA noted that AM had relied on the Master Plan in prior litigation and had referred to the Master Plan in various company reports.]

[52] . . . AM’s industrial activities, impacting as they do on the environment, including on air quality and water resources, [have] an effect on persons and communities in the immediate vicinity and [are] ultimately of importance to the country as a whole. Translated, this means that the public is affected and that AM’s activities and the effects thereof are matters of public importance and interest. . . . AM is a major, if not *the* major, polluter in the areas in which it conducts operations. . . .

[55] It is clear . . . that when [AM’s] Master Plan was being formulated it was seen as a forward looking document, informing action not only in the present but setting out a strategy for the future—a 20 year plan. . . . It also appears to have been of some importance in the acquisition of regulatory approvals.

[56] . . . [T]he Master Plan has importance as a baseline document. Historically extensive data, even disputed standards and testing methodology, must be valuable. The asserted flaws can be examined and/or challenged. The veracity of AM’s justifications can be measured. . . .

[61] . . . AM ignores the fact that . . . reliance was placed by VEJA on three statutes, [one of which was the [the National Environmental Management Act 107 of 1998 (NEMA)]

[65] . . . [S]ection 2(4)(f) of NEMA states the following:

“(f) The participation of all interested and affected parties in environmental governance must be promoted, and all people must have the opportunity to develop the understanding, skills and capacity necessary for achieving equitable and effective participation, and participation by vulnerable and disadvantaged persons must be ensured.”

[66] Of particular importance in relation to [the Promotion of Access to Information Act 2 of 2000 (PAIA)] is what is set out in section 2(4)(k) of NEMA. That section reads:

“(k) Decisions must be taken in an open and transparent manner, and access to information must be provided in accordance with the law.”

I accept that this relates principally to the state. However, the same must, in principle, apply to corporate decisions and activities that impact on the environment . . . particularly when their activities require regulatory approval. . . .

[71] . . . [I]n accordance with international trends, and constitutional values and norms, . . . our Legislature has recognised, in the field of environmental protection, *inter alia* the importance of consultation and interaction with the public. After all, environmental degradation affects us all. One might rightly speak of collaborative corporate governance in relation to the environment. In [*Biowatch Trust v. Registrar for Genetic Resources and Others* (2009)] . . . the Constitutional Court said the following:

“ . . . A perusal of the law reports shows how vital the participation of public-interest groups has been to the development of this court’s jurisprudence. . . . Similarly, the protection of environmental rights will not only depend on the diligence of public officials, but also on the existence of a lively civil society willing to litigate in the public interest. This is expressly adverted to by the National Environmental Management [Act] (NEMA) which provides that a court may decide not to award costs against unsuccessful litigants who are acting in the public interest or to protect the environment and who had made due efforts to use other means for obtaining the relief sought.”

. . . [75] . . . We were urged by Counsel on behalf of AM . . . to not ignore the distinction drawn in [the PAIA] between the obligations of the State in dealing with requests for information, and the obligations of private parties. It was submitted that the obligation on the State to produce information is much more stringent. . . .

[76] The grounds for refusal contained in Chapter 4 of PAIA relate principally to the protection of information related to the privacy, confidentiality and safety of third parties and individuals who are natural persons. There is also protection of information privileged from production in legal proceedings and for certain categories of commercial information. These exclusions are not relevant to the present dispute. . . .

[78] . . . PAIA, in its preamble, recognises that the system of government in South Africa, before the advent of a constitutional democracy, “resulted in a secretive and unresponsive culture in *public and private* bodies which often led to an abuse of power and human rights violations.” . . .

[80] I am mindful of the caveat . . . that one must guard against forcing corporates to throw open their books on claims of alleged minor errors or irregularities. The basis provided by VEJA for its application does not fall into the category of trivial or frivolous. It concerns us all. . . .

[81] . . . AM was disingenuous in claiming ignorance of the existence of its own Master Plan. . . . The disclosure of the information will enable either a verification of AM’s stance or might cause us to have even greater concerns about environmental degradation. That it will be a valuable controlling tool can afford of no doubt. Insofar as the information related to the Vaal Disposal site is concerned, the public is entitled to be assuaged as to the safety of that site.

[82] Corporations operating within our borders, whether local or international, must be left in no doubt that in relation to the environment in circumstances such as those under discussion, there is no room for secrecy and that constitutional values will be enforced. . . .

Information Distortion and Suppression

Many of the risks posed to our health by climate change and environmental degradation are not immediately apparent. This section explores the obligations of the private sector, whose behavior affects the climate on a large scale, to investigate and to inform the public of the probable consequences of its practices. We begin with a case brought by the New York State Attorney General alleging that Exxon Mobil had failed to meet its obligations to inform investors about the environmental risks of the company’s behavior. The State Attorney General’s post-trial memorandum and the decision of the state trial court are excerpted below.

**Plaintiff’s Post-Trial Memorandum,
People of the State of New York v. Exxon Mobil
Supreme Court of the State of New York, New York County
Index No. 452044/2018 (November 18, 2019)**

[Letitia James, Attorney General of the State of New York:]

. . . Most of the underlying facts are undisputed. There is no dispute that Exxon did not use the carbon cost figures it publicly disclosed, reaching \$80 per ton by 2040

in developed countries, in projecting future costs associated with its [greenhouse gas (GHG)] emissions from its investments and operations. Instead, Exxon used the publicly disclosed costs in its demand projections only, and used significantly lower figures, or none at all, in its cost projections. . . . And there is no genuine dispute that the figures that Exxon applied—or failed to apply—in its cost projections affected its long-term cash flow projections across a host of decision-making and planning functions, impacting both existing projects and projects in the development pipeline.

. . . [D]id Exxon mislead its investors by representing that it was using the escalating carbon costs it publicly disclosed for purposes of projecting costs associated with its emissions from its investments and operations? . . . [W]ere Exxon’s representations regarding its use of a carbon cost material? . . .

. . . [New York state’s] Martin Act prohibits the use of any “deception, misrepresentation, concealment, suppression, fraud, false pretense or false promise” in connection with the “issuance, exchange, purchase, sale, promotion, negotiation, advertisement, investment advice or distribution” of securities. . . . To establish liability under the Martin Act, the [New York Office of the Attorney General] must demonstrate by a preponderance of the evidence that the defendants’ statements or omissions were materially misleading. . . .

Fraudulent acts that violate the Martin Act also violate [New York state’s] Executive Law § 63(12) when they are repeated or persistent. Executive Law § 63(12) prohibits “repeated fraudulent or illegal acts” and “persistent fraud or illegality in the carrying on, conducting or transaction of business.” . . .

Between December 2013 and the end of 2016, Exxon misleadingly represented that the company used its publicly disclosed carbon costs in projecting costs associated with its emissions The key disclosures stretched across Exxon’s March 2014 *Managing the Risks* and *Energy and Climate* reports, its December 2013 and December 2014 investor presentations in New York City, its Carbon Disclosure Project responses and Corporate Citizenship Reports, and [CEO Rex] Tillerson’s statement at the 2016 shareholder meeting.

Exxon made these statements in response to shareholder concerns that the company’s assets could become stranded in a future with increasingly stringent climate change regulation. Investors wanted to understand the steps the company was taking to minimize that long-term risk. . . .

. . . Exxon emphasized that it recognized that governments will respond to climate change by imposing increasingly stringent carbon costs over the coming decades. . . . And in its 2014 Corporate Citizenship Report, Exxon announced that it was not making “business as usual” assumptions on climate policy. In each of these reports, Exxon stated that it used a cost of carbon, reaching \$80 per ton of emissions in

2040 in developed countries and \$20-\$40 per ton in many non-OECD countries, in its investment decision-making and business planning.

. . . Exxon never disclosed that its internal Dataguide included significantly lower figures, reaching only \$40 in developed countries, and included no cost at all in base economics for non-OECD countries. And Exxon certainly never disclosed that it was assuming that existing legislated carbon costs, however low they may be, were going to remain in place, with no increase, for decades into the future. Exxon also never disclosed that in developed countries without existing legislated costs, it was going to assume that no such costs would be imposed in the coming decades. Nor did Exxon disclose that in its impairment evaluations, it was assuming that no costs associated with GHG emissions will be imposed in the future. Such assumptions are fundamentally contrary to Exxon's representations that it believed that governments will impose increasingly stringent climate policies, and that it applied a cost of carbon to incorporate that risk into its investment decision-making and business planning. . . .

Climate change regulatory risk is a critical risk in the oil and gas industry, and as a consequence, Exxon's misleading statements about its management of that risk are clearly material to investors. The applicable standard is whether there is a substantial likelihood that a reasonable investor would have considered Exxon's representations significant in light of the "total mix of information." . . .

There is no requirement that the topic of a company's disclosure be the most important factor to investors, or that the disclosure have a specific effect on the company's books and records, to be considered material. . . .

. . . [T]he fact that climate change risks to Exxon's business have not yet been fully realized, and that some investors may consider other factors to be more important, are no indication that those risks are immaterial. To the contrary, misleading statements about significant environmental risks are material regardless of whether they have a particular impact on a line item in a company's books and records. . . .

Major financial firms have also emphasized the importance of climate regulatory risk and have called for companies to disclose information about their management of such risks, including through the use of an internal price of carbon. . . .

Exxon has presented no good reason to doubt . . . that "real investors" cared about the company's disclosures concerning its management of climate change risk

Exxon also observes that nobody knows what carbon costs governments will impose in 2030 or 2040, but that is precisely why Exxon's disclosures about the assumptions it was making were so important. Many investors believe that oil and gas assets may become stranded, not under existing legislation, but under prospective climate legislation over the coming decades, and that companies' decisions and plans today will determine how they fare in the long term. Exxon's management of long-term climate change risks was significant enough for the company to publish two substantial

reports on the topic In short, investors were asking Exxon how it was managing long-term climate regulatory risks, and Exxon responded with multiple, substantial public disclosures. For Exxon to now assert that no one cared is absurd. . . .

People of the State of New York v. Exxon Mobil
Supreme Court of the State of New York, New York County
Index No. 452044/2018 (December 10, 2019)*

[Justice Barry Ostrager:]

. . . The Complaint . . . asserted four claims for relief prefaced by allegations asserting, *inter alia*, that ExxonMobil engaged in a “longstanding fraudulent scheme” “sanctioned at the highest levels of the company,” “[effectively erecting] a Potemkin village to create the illusion that it had fully considered the risks of climate change regulation and had factored those risks into its business operations.” The Complaint further alleges that “in reality [ExxonMobil] knew that its representations were not supported by the facts and were contrary to its internal business practices”

Nothing in this opinion is intended to absolve ExxonMobil from responsibility for contributing to climate change through the emission of greenhouse gases in the production of its fossil fuel products. ExxonMobil does not dispute either that its operations produce greenhouse gases or that greenhouse gases contribute to climate change. But ExxonMobil is in the business of producing energy, and this is a securities fraud case, not a climate change case. . . . [T]he Office of the Attorney General failed to prove by a preponderance of the evidence that ExxonMobil made any material misrepresentations that “would have been viewed by a reasonable investor as having significantly altered the ‘total mix’ of information made available.” . . .

. . . The alleged misrepresentations are principally contained in [*Managing the Risks* and *Energy and Climate*, two Exxon publications] dated March 31, 2014 The Office of the Attorney General also alleges that misrepresentations were made at two investor presentations in New York City in December 2013 and December 2014, in ExxonMobil’s Carbon Disclosure Project (“CDP”) Responses, in ExxonMobil’s Corporate Citizenship Reports, and by former ExxonMobil CEO Rex Tillerson at the March 25, 2016 ExxonMobil shareholder meeting. . . .

. . . [T]here was no evidence adduced at trial that the publication of the March 2014 Reports had any market impact at the time they were published or that investment analysts took note of the contents of these documents which were widely disseminated

* After the state trial court ruled for Exxon, environmental activists filed a motion to intervene to unseal the judicial documents filed in the case. The motion was denied in February 2020, and subsequent appeals are pending.

. . . [T]here was no proof offered at trial that established *material* misrepresentations or omissions contained in any of ExxonMobil's public disclosures that satisfy the applicable legal standard. The total mix of information available to ExxonMobil investors during the relevant period included an annual, publicly-filed report . . . , the two March 2014 Reports, ExxonMobil's Form 10-Ks, ExxonMobil's annual Corporate Citizenship Reports, and a host of other publicly available information that was not the subject of testimony at trial

ExxonMobil's disclosures were not intended to enable investors to conduct meaningful economic analyses of ExxonMobil's internal planning assumptions, and no reasonable investor would have viewed speculative assumptions about hypothetical regulatory costs projected decades into the future as "significantly alter[ing] the total mix of information made available." . . .

. . . ExxonMobil executives and employees were uniformly committed to rigorously discharging their duties in the most comprehensive and meticulous manner possible. . . . The testimony of these witnesses demonstrated that ExxonMobil has a culture of disciplined analysis, planning, accounting, and reporting. . . .

. . . [T]he Office of the Attorney General failed to prove, by a preponderance of the evidence, that ExxonMobil made any material misstatements or omissions about its practices and procedures that misled any reasonable investor. The Office of the Attorney General produced no testimony either from any investor who claimed to have been misled by any disclosure The publication of *Managing the Risks* had no market impact and was, as far as the evidence adduced at trial reflected, essentially ignored by the investment community. . . .

. . . [T]he claims asserted . . . under the Martin Act and Executive Law § 63(12) are denied, and the action is dismissed with prejudice.

* * *

We conclude the section with an address by Lord Sales of the Supreme Court of the United Kingdom to the Anglo-Australasian Law Society, in which he discussed companies' increasingly robust obligations to consider and reduce their environmental harms.

Directors' Duties and Climate Change Lord Philip Sales (2019) *

. . . The climate change emergency . . . is already having impacts on the financial and business worlds. Those worlds also make their contribution to the problem. Do they

* Excerpted from Lord Philip Sales, Justice of the Supreme Court of the United Kingdom, *Directors' Duties and Climate Change: Keeping Pace with Environmental Challenges*, Address to the Anglo-Australasian Law Society (Aug. 27, 2019).

have the ability to change their activities to lessen that contribution? Does the law in relation to the duties of company directors have a role to play? . . .

The response of company law to the novel and growing challenges presented by climate change and wider environmental issues is still in its infancy in both England and Australia. However, legislative activity in this area has increased since the early 2000s, particularly in England, and this trend is likely to continue. . . .

The position of directors of companies in relation to climate change can be analysed under three heads.

First, they will have obligations to comply with the various regulatory and legal disclosure requirements now being specified.

Secondly, in so far as the law imposes fines in relation to polluting activities or creates tax incentives to encourage a shift to low carbon activity, directors will have a responsibility in the usual way to assess the financial impacts of these on their companies. This is a direct way in which the state can in effect force directors to take account of climate change effects of their companies, through reliance on the duty of directors to safeguard the finances of their companies as part of their obligation to promote the commercial interests of their shareholders.

Thirdly, apart from this regulatory and state action, the general fiduciary obligations of directors owed to their companies—representing as the case may be the interests of shareholders or, in certain circumstances, creditors—may permit directors to have regard to climate change effects as a factor in their decision-making. There is a spectrum of possibilities here. At one end, under directors' fiduciary obligations and obligations to exercise due care in the management of a company's affairs, environmental matters may be something they are permitted to have regard to, if they choose in their discretion to do so. Next, the law may impose an obligation on them to "have regard" to such matters when exercising their managerial powers. But with a "have regard" obligation they would usually be entitled to find that other relevant factors, such as maximising shareholder value, could outweigh climate change considerations. Under certain circumstances, however, their companies' interests may be so implicated by climate change effects that their general fiduciary and due care obligations actually require them to cause their companies to take action to reduce their contribution to climate changing activity.

Since, for the most part, this sort of decision is a permissive rather than obligatory matter so far as the law is concerned, the identity of the directors and their general mind-set and willingness to take into account climate change factors can make a significant difference to the practice of the companies on the ground. . . .

. . . [T]he approach in both [Australia and England] is still driven by risk management, i.e. avoiding negative outcomes for the company. . . . [T]he main relevant legal duty in Australia, the duty of care and diligence . . . , is framed in minimalist terms

which point to that conclusion. As [Noel Hutley SC 2016 Memorandum of Opinion] puts it, “the degree of care and diligence required of a director in any given context will depend upon the ‘nature and extent of the foreseeable risk of harm to the company that would otherwise arise.’” Similarly, the core . . . legal duty in England to promote the success of the company, while couched in more positive terms, certainly does not require directors to be at the vanguard of corporate governance either. In my view, that is not necessarily a major legal impediment to greater action based on taking account of environmental impacts, provided more specific requirements (including on disclosure, reporting, information-gathering and risk analysis) supplement these overarching general directors’ duties. . . .

FORGING A GLOBAL ENVIRONMENTAL PACT

Climate change is a global problem requiring global solutions. As illustrated by the world’s response to COVID-19, global problems can serve as stress tests on subnational, national, regional, and international governance systems. The preceding materials demonstrate how courts responded to climate change litigation largely in the shadow of domestic and regional constitutional provisions. Although the Paris Climate Change Agreement was adopted in December 2015 and has since resulted in various instances of litigation, there is not yet an international climate treaty that interacts with national and regional constitutions. This section explores recent and ongoing efforts to forge a Global Pact for the Environment, with a focus on the players involved, the goals of the Pact, and obstacles to achieving these efforts.

Technological Revolution, Democratic Recession and Climate Change Luís Roberto Barroso (2019)*

. . . Climate change has been identified as the most relevant environmental problem of the 21st century and one of the issues that defines our time. . . . Addressing environmental issues requires cooperation between countries, for natural resources and the factors that affect them are not contained by borders. . . . [T]he planet is warming up and . . . the consequences . . . can already be felt in different parts of the world. These include global warming, ocean warming, ice sheet melting in Greenland and Antarctica, glacial retreat, the loss of snow cover in the Northern Hemisphere, sea level rise, loss in the extent and thickness of the Arctic sea ice, species extinction and increasing numbers of extreme weather conditions (such as hurricanes, floods and heat waves). In the Amazon, the largest biodiversity repository and largest carbon storage in the world, the original forest area has been reduced in a staggering scale and is seriously affected by activities such as agriculture, livestock, timber exploitation and mining. . . .

* Excerpted from a 2019 draft of Luís Roberto Barroso, *Technological Revolution, Democratic Recession and Climate Change*, INTERNATIONAL JOURNAL OF CONSTITUTIONAL LAW (forthcoming 2020).

Although voluntary social behavior deriving from environmental awareness is important, it is clearly not enough. Law, with its normative force and mechanisms of incentives and sanctions, will play a decisive role in dealing with the subject. Some of the major initiatives on global warming have [their] origins in international law, starting with the 1992 United Nations Framework Convention on Climate Change (UNFCCC Convention). The purpose of the Convention was “to stabilize greenhouse gas concentrations in the atmosphere at a level that would prevent dangerous anthropogenic (*i.e.* human-caused) interference with the climate system.” The Framework Convention, which came into force in 1994 and was ratified by 197 countries, established comprehensive principles, general obligations and negotiation processes to be detailed in subsequent conferences between the parties. . . . The Kyoto Protocol and the Paris Agreement came next, completing the UN’s normative regime on climatic changes. . . .

. . . [T]he Paris Agreement is widely recognized as a significant breakthrough The harsh reality . . . is that countries have made promises that they will not be able to honor. . . . [C]ountries have the flexibility to set their own commitments and there are no coercive enforcement mechanisms. In this context, two are the problems that have been detected: emission reduction targets will not be reached, and, in addition, they have proved to be insufficient. . . .

A general evaluation of the results of the Paris Agreement is expected in 2023. There are few doubts that much broader efforts will be needed to achieve the proposed goals. Nothing about this subject is simple [S]hort-term electoral cycles do not favor decisions whose positive consequences are only felt in the long-term. . . . [M]ost people who will be affected by climate change have no voice or vote, either because they are very young or because they have not even been born. . . . [I]ntricate technical and scientific issues rarely attract popular mobilization. . . . [B]ecause it is a global problem, it does not involve strictly national solutions, which makes some nationalist politicians prefer to believe that the problem does not exist. . . .

In a scenario full of asymmetries among countries, marked by globalization, transnational problems and extraterritoriality of solutions, public law lives an important moment and is in search of new horizons. The nineteenth century was the century of private law—the property holder and the contractor. The twentieth century witnessed the rise of public law, the welfare state and the expansion of constitutional jurisdiction. The 21st century coexists with the expectations of a global society, which demands, in relation to specific issues, an equally global law. This is not a philosophical or doctrinal choice, but an inevitable scenario: social networks via the Internet, carbon monoxide and campaigns to destabilize democracy do not respect borders or sovereignties.

A Global Pact for the Environment

Yann Aguila (2020)*

. . . [I]nternational environmental law . . . lacks a fundamental, legally binding document that effectively translates environmental law principles in international and national legal systems. As a result, effective global environmental governance is impeded by fragmentation and gaps in the law. . . . A Global Pact would fill this gap by serving as an “umbrella text” of sorts, and thus reinforce the coherence of international environmental law. Thus, a Global Pact would harmonize the law as well as evolve and expand the legal protections that exist for the global environment.

In 2017, a group of legal experts sought to give shape to this idea by elaborating an initial draft of a Global Pact. This draft is based on two “source principles”, a right and a duty: the right to a healthy environment and the duty to take care of the environment. These source principles are corollaries of one another, as the right to a healthy environment cannot exist without a countervailing responsibility to protect and preserve the environment. These source principles give rise to a set of widely recognized principles of international environmental law: duties of prevention and remediation of environmental harms, the right to information and public participation in environmental decision-making, and polluter-pays. This draft Pact also proposes innovative principles, such as non-regression or *official* recognition of the role of civil society in environmental protection. This Global Pact can be seen as a global environmental constitution

The ambition to develop a Global Pact for the Environment is not new in global environmental governance. The first significant attempt to develop a global framework for environmental protection was the Conference on Human Environment in Stockholm in June 1972, now widely regarded as the “constitutional moment” of international environmental law. Yet despite its fundamental political importance, the conference’s resulting declaration was a soft-law instrument devoid of legal force. . . .

. . . [T]he 1992 Rio Declaration on Environment and Development . . . set forth constitutional principles for global environmental governance. . . . Many of these environmental principles have catalyzed the development of customary norms and have been transposed into a wide range of global treaties and instruments. However, it is also important to note that these examples highlight the limitations of “soft-law” instruments like the Rio Declaration, in that they establish principles without legal force that *may*, and often in piece-meal fashion, crystallize into customary norms or be adopted into binding agreements. . . .

Inspired by the 1992 Rio Declaration, the International Union for the Conservation of Nature (IUCN) released the first of consistently updated drafts of an

* Excerpted from Yann Aguila, *A Global Pact for the Environment: The Logical Outcome of 50 Years of International Environmental Law*, 12 SUSTAINABILITY 5636 (2020).

International Covenant on Environment and Development in 1995. Further developments pointing to a Global Pact include the 2012 Rio Summit on Sustainable Development, the 2015 Addis Ababa Action Agenda on Financing for Development, the Agenda for Sustainable Development with its Sustainable Development Goals (SDGs) in 2015, and, finally, the adoption of the Paris Agreement in December 2015.

In November 2015, the legal think-tank *Club des Juristes* released a report recommending the adoption of a Universal “Pact” to unify international environmental law in a binding instrument that would (i) impose environmental obligations on states and non-state actors; (ii) confer environmental rights to citizens; and (iii) create an invocable legal instrument in national courts. The adoption of the Paris Agreement inspired high-level international support and led to the 2017 convening of an international network of over 100 environmental law experts from more than 40 countries who redacted a draft text for a Global Pact in June 2017. . . .

In September 2017, over 40 heads of state expressed their support at the “Summit on a Global Pact for the Environment.” In May 2018, the UN General Assembly adopted the enabling resolution “Towards a Global Pact for the Environment,” with 143 states voting to adopt the resolution and only five voting against it (the United States, Russia, Syria, the Philippines, and Turkey); the latter were broadly unconvinced that a Global Pact is a priority and necessary. . . . The enabling resolution called on the UN Secretary-General to prepare a report and to set up a working group to make recommendations to the UN General Assembly on the matter, including the possibility to convene an intergovernmental conference to adopt an international instrument.

The Secretary-General’s November 2018 report found that international environmental law could indeed be strengthened “through a comprehensive and unifying international instrument that gathers all the principles of environmental law.” The Pact’s working group met at the UN Environment’s Nairobi headquarters for three substantive meetings during 2019, resulting in a recommendation to states to adopt a “political declaration” on the matter in 2022, in the context of the 50th anniversary of the Stockholm Conference. While this delays the Pact’s adoption, supporters of the Pact remain hopeful that continued mobilization might see the formal adoption of a Global Pact in 2022. . . .

Draft Global Pact for the Environment International Group of Experts for the Pact (2017)

The Parties to the present Pact . . . [h]ave agreed as follows:

Article 1. Every person has the right to live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfilment.

Article 2. Every State or international institution, every person, natural or legal, public or private, has the duty to take care of the environment. To this end, everyone contributes at their own levels to the conservation, protection and restoration of the integrity of the Earth's ecosystem.

Article 3. Parties shall integrate the requirements of environmental protection into the planning and implementation of their policies and national and international activities, especially in order to promote the fight against climate change, the protection of oceans and the maintenance of biodiversity. They shall pursue sustainable development. . . . [T]hey shall ensure the promotion of public support policies, patterns of production and consumption both sustainable and respectful of the environment.

Article 4. Intergenerational equity shall guide decisions that may have an impact on the environment. Present generations shall ensure that their decisions and actions do not compromise the ability of future generations to meet their own needs.

Article 5. The necessary measures shall be taken to prevent environmental harm. The Parties have the duty to ensure that activities under their jurisdiction or control do not cause damage to the environments of other Parties or in areas beyond the limits of their national jurisdiction. They shall take the necessary measures to ensure that an environmental impact assessment is conducted prior to any decision made to authorise or engage in a project, an activity, a plan, or a program that is likely to have a significant adverse impact on the environment. In particular, States shall keep under surveillance the effect of an above-mentioned project, activity, plan, or program which they authorise or engage in, in view of their obligation of due diligence.

Article 6. Where there is a risk of serious or irreversible damage, lack of scientific certainty shall not be used as a reason for postponing the adoption of effective and proportionate measures to prevent environmental degradation.

Article 7. The necessary measures shall be taken to ensure an adequate remediation of environmental damages. Parties shall immediately notify other States of any natural disasters or other emergencies that are likely to produce sudden harmful effects on the environment of those States. Parties shall promptly cooperate to help concerned States.

Article 8. Parties shall ensure that prevention, mitigation and remediation costs for pollution, and other environmental disruptions and degradation are, to the greatest possible extent, borne by their originator.

Article 9. Every person, without being required to state an interest, has a right of access to environmental information held by public authorities. Public authorities shall, within the framework of their national legislations, collect and make available to the public relevant environmental information.

Article 10. Every person has the right to participate, at an appropriate stage and while options are still open, to the preparation of decisions, measures, plans, programmes, activities, policies and normative instruments of public authorities that may have a significant effect on the environment.

Article 11. Parties shall ensure the right of effective and affordable access to administrative and judicial procedures, including redress and remedies, to challenge acts or omissions of public authorities or private persons which contravene environmental law, taking into consideration the provisions of the present Pact.

Article 12. The Parties shall ensure that environmental education, to the greatest possible extent, is taught to members of the younger generation as well as to adults, in order to inspire in everyone a responsible conduct in protecting and improving the environment. The Parties shall ensure the protection of freedom of expression and information in environmental matters. They support the dissemination by mass media of information of an educational nature on ecosystems and on the need to protect and preserve the environment.

Article 13. The Parties shall promote, to the best of their ability, the improvement of scientific knowledge of ecosystems and the impact of human activities. They shall cooperate through exchanges of scientific and technological knowledge and by enhancing the development, adaptation, dissemination and transfer of technologies respectful of the environment, including innovative technologies.

Article 14. The Parties shall take the necessary measures to encourage the implementation of this Pact by non-State actors and subnational entities, including civil society, economic actors, cities and regions taking into account their vital role in the protection of the environment.

Article 15. The Parties have the duty to adopt effective environmental laws, and to ensure their effective and fair implementation and enforcement.

Article 16. The Parties shall take necessary measures to maintain and restore the diversity and capacity of ecosystems and human communities to withstand environmental disruptions and degradation and to recover and adapt.

Article 17. The Parties and their sub-national entities refrain from allowing activities or adopting norms that have the effect of reducing the global level of environmental protection guaranteed by current law.

Article 18. In order to conserve, protect and restore the integrity of the Earth's ecosystem and community of life, Parties shall cooperate in good faith and in a spirit of global partnership for the implementation of the provisions of the present Pact.

Article 19. States shall take pursuant to their obligations under international law all feasible measures to protect the environment in relation to armed conflicts.

Article 20. The special situation and needs of developing countries, particularly the least developed and those most environmentally vulnerable, shall be given special attention. Account shall be taken, where appropriate, of the Parties' common but differentiated responsibilities and respective capabilities, in light of different national circumstances.

Article 21. A compliance mechanism to facilitate implementation of, and to promote compliance with, the provisions of the present Pact is hereby established. This mechanism consists of a Committee of independent experts and focuses on facilitation. It operates in a transparent, non-adversarial and non-punitive manner. The committee shall pay particular attention to the respective national circumstances and capabilities of the Parties. One year after the entry into force of the present Pact, the Depositary shall convene a meeting of the Parties which will establish the modalities and procedures by which the Committee shall exercise its functions. Two years after the Committee takes office, and at a frequency to be determined by the meeting of the Parties, not exceeding four years, each Party shall report to the Committee on its progress in implementing the provisions of the Pact. . . .

* * *

The UN General Assembly adopted Enabling Resolution 72/277, titled *Towards a Global Pact for the Environment*, in May 2018. The Resolution tasked the UN Secretary-General with preparing a report on the existing gaps in international environment law. The UN Secretary-General released the report in November 2018.

**Gaps in International Environmental Law
and Environment-Related Instruments**
United Nations Secretary-General (2018)*

. . . 24. The involvement of a large number of States with diverse national circumstances and priorities in treaty negotiations leads to the fact that multilateral environmental agreements often serve multiple objectives which are not always easily reconciled or mutually enhancing, but arise out of political compromises struck between different interests. Without these compromises, and their often deliberate constructive ambiguities and gaps, however, the likelihood of agreement on international environmental treaties would be significantly diminished, undermining the prospect for global cooperation on urgent environmental issues.

25. Broad participation also relies on workable notions of fairness, including the concepts of equitable burden and effort-sharing. Multilateral environmental agreements therefore often contain provisions that take into account differing circumstances. . . .

* Excerpted from U.N. Secretary-General, *Gaps in International Environmental Law and Environment-Related Instruments: Towards a Global Pact for the Environment*, U.N. Doc. A/73/419 (Nov. 30, 2018).

[B]ecause the national circumstances and capabilities of States differ significantly, the future development of international environmental law is likely to require more, rather than less, differentiation and flexibility. . . .

77. The structure of international environmental governance is characterized by institutional fragmentation and a heterogeneous set of actors. Although States remain the primary actors, international environmental governance is a multi-actor governance system that includes international institutions, treaty bodies, non-governmental organizations, the scientific community and the private sector.

78. A multiplicity of global and regional international institutions participate in the task of international environmental law-making and implementation. They comprise entities of the United Nations system and treaty bodies established by multilateral environmental agreements. . . .

79. After the Stockholm Conference, international environmental law-making saw the proliferation of multilateral environmental agreements and the emergence of treaty-based bodies. According to the Environmental Law Information Service (ECOLEX), there are currently more than 500 multilateral environmental agreements, and it has been estimated that some 200 or so treaty-based institutions were established in the two decades after the Stockholm Conference. . . .

80. The proliferation of multilateral environmental agreements and the resultant distinct and separate mandates ignore the unity, interconnectedness and interdependence of the Earth's ecosystem. They also create potential for overlap and conflict, institutional and policy incoherence and increased financial and administrative burdens on States parties. Significant efforts, however, are made to ensure mutual supportiveness among such agreements either in their texts . . . or in the way they are further developed and implemented More efforts could be made to establish or strengthen mechanisms to harness interlinkages and promote synergies for more effective implementation. . . .

82. Enhanced coordination might be necessary not only within the field of international environmental law, but also between multilateral environmental agreements and other instruments that directly or indirectly affect the environment, such as trade law, investment law and intellectual property rights regimes.

83. Institutional fragmentation and weak coordination between treaties can be addressed through various means, such as: (a) creating clusters and synergies between conventions; (b) mapping existing global and regional action plans and agreements to create an overview of coverage and identify interlinkages; (c) avoiding duplication of reporting and/or monitoring processes by using the same reporting channels and not creating additional burdens ("integrated reporting"); (d) sharing lessons learned and best practices; (e) developing implementation guidelines for multilateral environmental agreements; and (f) sharing information among the different scientific bodies that

support the work of related multilateral environmental agreements. Potential conflicts between treaty regimes can be managed by using legal means, including conflict clauses, mutual supportiveness or the application of the general rule of treaty interpretation contained in . . . the Vienna Convention on the Law of Treaties.

84. The trend in international environmental governance is increasingly towards broadening the range of actors recognized as having a legitimate role in governance. . . . However, . . . [v]ery few regimes provide for public participation in the non-compliance procedures established to monitor, review and verify compliance with international obligations. . . . [C]ompared to the international human rights mechanisms there exists a significant gap in international environmental law regarding effective participation by non-State actors in international law-making and implementation. . . .

86. The lack of effective implementation of many multilateral environmental agreements has been identified as a major gap in addressing environmental challenges. . . . Implementation deficits arise for different reasons, including knowledge gaps; a lack of adequate means of implementation, such as finance, capacity-building or technology; the need for facilitation for compliance; a lack of coordination between relevant government departments as well as with other sectors; insufficient monitoring and law enforcement; a lack of political will; and the inadequate engagement of different stakeholders, such as civil society and women's organizations. . . .

92. Compliance mechanisms and procedures established within a multilateral environment agreement provide a multilateral avenue for addressing party-specific compliance challenges. . . . While some treaties have established mechanisms to monitor compliance and address cases of non-compliance, overall there remains a need to strengthen these procedures in order to promote the effective implementation of international environmental law. In addition, gaps in this context may be viewed in participatory terms, inasmuch as non-compliance bodies do not generally permit non-State actors to raise complaints.

93. Gaps also persist in the enforcement of rights and obligations regarding the global commons and shared natural resources, such as the high seas, Antarctica and outer space. In terms of disputes concerning natural resources which do not originate from environmental treaties, practices under international trade and investment regimes also reveal gaps in the implementation and effectiveness of environmental norms. Such gaps in regime interaction may also arise insofar as many environmental treaties do not address their relationships with economic treaties, which may give rise to distinct sources of applicable law or jurisdiction in a given dispute.

94. . . . [A] liability and redress regime for transboundary environmental harm serves several policy objectives: first, it serves as an instrument for the internalization of the environmental costs of polluting activities by making the polluters pay; second, it incentivizes compliance with international environmental norms and standards and ensures the implementation of the precautionary and preventive principles; and finally,

it ensures the redress of environmental damage through the implementation of restorative measures. Whereas there has been a remarkable proliferation of multilateral environmental agreements since the Stockholm Conference, there has been only limited development in the area of liability and redress for transboundary environmental harm. . . .

96. The rules of State responsibility may need to be further developed if they are to play any significant role as a tool for redressing transboundary environmental harm. Currently there are some important constraints. In particular, the “due diligence” standard of care implies a demonstration of fault on the part of the State concerned since it denotes an obligation of conduct and not of result. . . .

98. There have been remarkable developments in treaty law relating to civil liability for transboundary environmental damage. Issue-specific treaty regimes cover diverse areas such as nuclear energy, oil pollution, the transport of dangerous goods and substances, living modified organisms and industrial accidents. . . .

99. There exist some notable deficiencies with respect to these regimes. . . . [T]he valuation of environmental damage and its reparation has proved problematic. While it is agreed that, for liability to arise, environmental damage should exceed a de minimis threshold, there is no agreed international standard for that threshold. . . . Most of the civil liability regimes restrict compensation to “costs of measures of reinstatement of the impaired environment undertaken or to be undertaken.” A number of courts and tribunals have, however, awarded compensation for pure environmental damage. In many cases, environmental damage in areas beyond the limits of national jurisdiction is not covered. . . .

113. Building upon the creative approaches that States have thus far adopted to protect the environment, it is essential that States and the United Nations work together to address gaps in international environmental law. We must collectively seize the opportunity to use international environmental law in new and dynamic ways to provide a strong and effective governance regime with a view to better safeguarding the environment for future generations.

* * *

After the release of the UN Secretary-General’s report, the Global Pact Working Group met three times in Nairobi over the first half of 2019. Instead of calling for immediate adoption of a binding international treaty, the Working Group recommended the adoption of a “political declaration” in 2022. For some commentators, the Working Group recommendations sounded the Global Pact’s death knell. For others, the delay represents an opportunity to revisit and continue strengthening the principles undergirding the Pact. The excerpts below reflect this range of attitudes towards the future of the Pact.

There Will Be No Global Environmental Constitution (at Least Not Now)

Jesse Reynolds (2019)*

. . . [T]he UN General Assembly appointed an ad hoc working group to discuss possible options to address possible gaps in international environmental law and environment-related instruments

Notably, this statement of task did not reference a “global pact” per se. . . . [T]he working group . . . negotiated and agreed upon a two page document whose thirteen substantive objectives are a far cry from bold. . . .

. . . [T]he working group encourages the relevant actors in international and national environmental governance to continue what they are doing and to increase their ambition. There is no mention of a possible new instrument, much less a quasi-constitutional Global Pact for the Environment. . . .

What happened? . . . First, one should not expect international agreements with both wide participation and deep commitments, as states’ preferences vary and international law is based on their consent. Second, states’ current (non)participation in multilateral agreements presumably reflects their preferences. After all, they’ve had fifty years to ratify the agreements that they wish to, and little has substantively changed in recent years to alter that calculus. Third, the original draft Global Pact for the Environment that some international legal scholars (mostly from developed countries, especially the French Club des Juristes) was tone-deaf to developing countries’ interests. . . .

[Another reason] for the Pact’s failure . . . regards the identity of the Pact’s original proponents [L]egal scholars, especially those who operate in international and environmental domains, too often fail to realize . . . that multilateral agreements typically reflect states’ diverse interests, not vice versa. . . . The proponents repeat “We demand a binding environmental treaty from States!” Setting aside the question of who are they to demand particular action from states (including where they neither live nor vote), if an agreement is reached, it will not have both near-global participation and substantially deep commitments.

* Excerpted from Jesse Reynolds, *There Will Be No Global Environmental Constitution (at Least Not Now)*, LEGALPLANET (June 18, 2019).

International Environmental Law's Lack of Normative Ambition

Louis J. Kotzé (2019)*

... [International Environmental Law (IEL)] is not sufficiently ambitious to deal with the increasingly assertive and destructive *Anthropos* (understood here to refer to a small and particularized, but powerful and privileged, subset of the past and present global human population), and with the myriad socio-ecological injustices arising from such human domination of the Earth system and of the vulnerable living order. . . .

... IEL must entrench ambitious ecological norms to address its “unmentionable gaps.” These “unmentionable gaps” relate to those norms that have not yet been agreed by the international community. . . . Some examples are the rights of nature, Earth system integrity, the principle of *in dubio pro natura* [(when in doubt, in favor of nature)], and ecological sustainability; all of which have the potential to push for a radically different and more ambitious normative framework to address the systemic challenges inherent in IEL and in global environmental governance . . .

... There seems to be general agreement that IEL has achieved many victories since its birth in the early 1970s. But there are likewise many valid views suggesting that IEL has not been able to confront head on the ever-deepening socio-ecological crisis that is engulfing the living order. . . .

First, ambitious climate laws are seen to inhibit economic growth . . . , while some of the more ambitious, and certainly innovative, law-making occurs in the areas of global investment law in an effort to stimulate global economic growth. . . .

Second, States have deliberately ensured that anthropocentric sustainable development is *the* cornerstone principle of IEL. But as deceptively simple and environmentally oriented an idea as sustainable development seems to be . . . [c]ritical legal scholars have shown that it is rather a convenient, fictitious ideological palliative that IEL underwrites and that legitimizes and helps rationalize anthropocentric Earth system altering practices. . . .

And third, IEL still consciously pursues voluntarism when it comes to corporate responsibility. It is failing as a result to reign in corporate exploitation and in creating stringent standards to regulate the many eco-destructive activities of corporations. . . .

The most recent and still ongoing initiative to reform IEL, is the Global Pact The Pact was drafted by a Group of Experts of which I was a member [T]he ambition of the Global Pact presumably lies in its pursuit to be the first binding framework instrument of IEL; in its vision to codify environmental principles; and in its pursuit to be the first global instrument that entrenches higher order global

* Excerpted from Louis J. Kotzé, *International Environmental Law's Lack of Normative Ambition: An Opportunity for the Global Pact for the Environment?*, 16 JOURNAL FOR EUROPEAN ENVIRONMENTAL & PLANNING LAW 213 (2019).

environmental constitutional norms in the form of rights. It therefore clearly wants to be ambitious. If it actually succeeds is an altogether different matter

. . . The Group of Experts was notably not constrained by the usual potentially inhibitive inter-State politics, exceptionalism and posturing; it could be as creative and *ambitious* as it wished to be and it could mention the “unmentionable gaps.” . . . [T]he Pact’s . . . preamble mentions the World Charter for Nature, the need for ecosystem resilience, respect for the balance and integrity of the Earth’s ecosystem, and the need to respect human rights obligations.

More importantly, article 1 says: “Every person has the right to live in an *ecologically sound environment* adequate for their health, well-being, dignity, culture and fulfilment.” . . . [N]o IEL instrument, hard or soft, currently provides for an environmental right. . . . The inclusion of such a “constitutional” right in a binding global instrument will therefore not only fill a normative gap in IEL, it could also potentially raise that instrument’s level of normative force and status to that equalling a global “constitution.” . . . [T]he Pact’s formulation . . . also ambitiously recognises *ecological soundness* as a threshold for transgression, and not the more generally encountered and anthropocentrically inclined “human health and well-being.”

. . . [A]rticle 2 provides for a duty of care This is a provision one is more likely to encounter in domestic regimes and its inclusion here, alongside the broadening of the scope of this duty to non-state actors and its reference to Earth system integrity, is both innovative, and I would suggest, ambitious. In fact, such a provision could also usefully form the basis of a norm holding corporations to account for their socio-ecological destruction. . . .

Articles 3-7 simply restate the well-known general principles of IEL including: integration and sustainable development, intergenerational equity (and strangely not also intra-generational or interspecies equity), prevention, precaution, remediation of environmental damages and polluter pays. A similar regurgitation occurs with respect to provisions on education and training, research and innovation, the role of non-state actors and subnational entities, cooperation, armed conflicts (from which provisions on ecocide are notably absent) and diversity of national situations. . . .

It is only towards the end of the draft text that there is again an attempt to be more ambitious. Article 15 states: “The Parties have the duty to adopt effective environmental laws, and to ensure their effective and fair implementation and enforcement.” Both in terms of the level and scope of obligation it requires and in terms of its purpose and possible practical implications, this is arguably one of the most ambitious norms of the draft text. Then follows a provision on resilience which provides “The Parties shall take necessary measures to maintain and restore the diversity and capacity of ecosystems and human communities to withstand environmental disruptions and degradation and to recover and adapt.” . . . While a strong case could be made . . . that IEL must . . . more ambitiously *improve* Earth system stability and integrity and

promote restoration, article 17 at least provides for the principle of non-regression: “The Parties and their sub-national entities [must] refrain from allowing activities or adopting norms that have the effect of reducing the global level of environmental protection guaranteed by current law.”

On balance then, the extent to which the draft Global [Pact] pursues normative ambition is a mixed bag. In some instances it innovatively offers ambitious norms that have not yet been taken up in the current body of IEL, and this is encouraging. But in other instances it simply restates several existing norms which cannot by any measure [be] said to be ambitious. It has shied away from being overtly “ecological” by shunning provisions such as the rights of nature, the principles of *in dubio pro natura* and inter-species justice. . . .

Despite the recent recommendations of the *ad hoc* working group to the [UN General Assembly] not to adopt a binding IEL instrument in the foreseeable future, the Global Pact initiative continues to offer an important opportunity to rethink the ways in which we respond juridically to an increasingly erratic Earth system and how we address the underlying drivers that cause, exacerbate and perpetuate the Anthropocene. I believe the Pact’s value lies specifically in how it admirably manages to raise awareness of global socio-ecological decline; how it attempts to seek broader consensus that something needs to be done soon; and for the momentum it is creating that could possibly culminate in the type of “global environmental constitutional moment” that the Anthropocene ultimately demands. . . .

. . . The disappointingly uninspiring recommendations of the *ad hoc* working group should serve as motivation to everyone involved with promoting the Global Pact to become much more “hostile” to the *status quo*, despite, or hopefully even consequent on, sustained radical critique that is aimed at bolstering this important initiative.

Prospects for 2020-2022 Maria Antonia Tigre (2020)*

. . . While . . . the exercise done [by the UN working group] in Nairobi to identify further challenges and options to improve the effectiveness of international environmental law . . . provide[s] a blueprint for the progressive development of international environmental law, it is important not to lose sight of the role of the codification of principles. . . .

. . . A Global Pact has the potential to clarify, consolidate, and legalize principles of international environmental law that now appear in hundreds of agreements and declarations. . . . [I]t also promises normative coherence for the international legal

* Excerpted from MARIA ANTONIA TIGRE, GAPS IN INTERNATIONAL ENVIRONMENTAL LAW: TOWARD A GLOBAL PACT FOR THE ENVIRONMENT 197-205 (2020).

system as a whole. If the Global Pact evolves into a treaty, it will clarify which principles are binding law and which are soft law. . . .

A binding and widely ratified Global Pact for the Environment [(GPE)] could provide clearer direction for treaty-interpreters to achieve systemic integration in public international law, due both to its ongoing crystallization of custom and to its potential status as a binding treaty. Questions that remain open or unaddressed by international instruments, such as the issue of plastics in marine environments, could rely upon a Global Pact. . . .

. . . [Principles can also] have a normative effect despite [their] non-legally binding effect. . . . The GPE, even if it does not become a treaty, could similarly carry significant normative weight in state and nonstate practice. Detailed application of the broad principles set forth . . . could then be provided through commentaries and model laws to assist with implementation and incorporation of the principles into domestic law.

By establishing the right of every person to “live in an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfillment,” the Global Pact offers a new way for environmental protection to be achieved through adjudication by national and international courts and tribunals. The codification of the right to the environment further contributes to the justiciability of environmental principles. . . . First, recognition [of the right to a healthy environment] would “raise awareness of and reinforce the understanding that human rights norms require protection of the environment and that environmental protection depends on the exercise of human rights”

Second, it would crystallize and integrate the human rights norms relating to the environment Third, the recognition would place greater attention on those most vulnerable to the effects of environmental harm. To further increase the protection, the Pact could strengthen individual or collective citizens’ rights, including the protection of environmental rights defenders and whistleblowers, the rights of environmentally displaced persons, the victims of sudden- or slow-onset disasters. Issues related to environmental justice, the rights of indigenous peoples, access to justice and to administrative documents for citizens and NGOs, and the rights of stakeholder groups in international negotiations could also be covered by specific provisions. Fourth, the recognition will raise “the profile and importance of environmental protection” and provide a basis for the enactment of stronger environmental laws, standards, regulations and policies [T]hese benefits do not depend on the recognition of the Global Pact as a binding treaty.

Additionally, a universal instrument on the general principles of environmental law would highlight innovative principles while helping to achieve the Sustainable Development Goals, consistent with their universality and indivisibility. The Global Pact provides a unique opportunity to develop a new approach to international standards

and contribute to the implementation of the 2030 Agenda. It could provide coordinating guidance for existing treaties, including on the guiding principles and concepts already contained in international instruments. Finally the role of the civil society needs to be reinforced. The Pact also imposes a duty to take care of the environment on “every person, natural or legal, public or private,” thus broadening the range of actors responsible for the environment. It enforces the vital role of subnational entities . . . and urges states to encourage their implementation of the Pact.

Given the advantages of the codification of principles, it is essential that the discussion continues. Moving forward, the focus should be on how, not if, to clarify the principles of international environmental law with normative values that facilitate consistency of interpretation and implementation in the context of sustainable development. . . .

Following a rights-based approach, the Pact could identify new environmental rights, further emphasizing the link between human rights and the environment. New rights such as granting rights to nature . . . could be adopted in the Pact, solidifying a trend followed recently by several countries. Recent developments in procedural rights should also be noted. As suggested by some delegates from Latin America, the discussions should consider the recently adopted Escazú Agreement on environment and human rights, signed on 4 March 2018 within the framework of the Economic Commission for Latin America and the Caribbean. A human rights approach would help support stronger compliance mechanisms open to the public, as well as calls for new agreements on procedural access rights, such as the Aarhus Convention and the Escazú Agreement

Concepts such as *buen vivir* (“living well” or “well-being”) and ecological solidarity are worth discussing with a view to their possible inclusion in the Pact. These facilitate the bringing together of environmental protection and an alternative development model that is more inclusive and mutually supportive. The Pact could adopt a “holistic” concept of the environment advocated by climate justice, encompassing all relevant elements (biodiversity, land use, exploitation of natural resources, protection of the seas and oceans, but also the agricultural and food issue). . . . The Pact could include principles such as ecological solidarity, non-regression or international liability for environmental damage. These are a few options on new developments in comparative environmental law, which could be included in a debate on the text of a political declaration. The next year invites such a debate with multiple options on which answers can properly address current and future challenges in environmental protection. It is essential that a new agreement presents a workable menu of answers providing emerging environmental principles to address the challenges of the Anthropocene.

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